Primary Sources Confirm the Record-Read Thesis

Read directly rather than through search snippets, the Texas primary documents make the professional-tier case for Snot Nose Legal sharper and in two places cheaper to prove, while taking away one pitch the earlier edition leaned on. The Texas Indigent Defense Commission's own appellate caseload study allots a full-time appointed appellate lawyer **34.8 to 100.2 hours per appeal depending on reporter's-record length, of which 3 to 40 hours is record review**, and caps a full-time caseload at 40 / 30 / 20 / 14 appeals a year for records under 100, 100–500, 500–1,500 and over 1,500 pages (TIDC Appellate Addendum, Dec 2016); the ten county fee schedules read this pass pay that work at **$50–$155 an hour or $1,250–$3,500 flat**, and two of them (Bexar, El Paso) say in terms that "computer research" and equipment are non-reimbursable overhead (Bexar District Courts fee order, June 2025; El Paso plan). The Court of Criminal Appeals' own tables show the writ lawyer's docket at **2,111 non-capital 11.07 applications received in FY2025**, of which 42% were denied without written order, 18% dismissed under the §4 subsequent-writ bar, 12% dismissed for non-compliance with the form rules and only 4.4% filed and set — and of the filed-and-set grants, roughly four in ten were restorations of a lost appeal or PDR rather than merits relief (CCA Activity Detail FY2025). The courts of appeals fully reversed **2.6% of criminal dispositions in FY2025** (4.3% of merits dispositions), and the CCA's PDR grant rate ranged from 5.9% to 14.6% across FY2020–FY2025 (COA Activity Detail FY2025; CCA FY2025). The State Bar's 2026 survey puts criminal law at **47% AI adoption, the only practice area under 50%**, with citation accuracy the stated gating concern (SBOT 2026 AI Survey), and the Supreme Court of Texas's proposed TRAP 9.1(d) would make every signer represent that "record citations are not fabricated" — proposed June 26, 2026, expected effective October 1, 2026, and still without a final order as of October 18 (Misc. Docket 26-9054; Supreme Court Administrative Orders 2026). The plan is unchanged in shape — a $199 Counsel Review on existing rails, then a Record Desk for verification and export, then Chambers tenancy for public defender appellate divisions — and changes in three particulars: the pilot outcome metric becomes TIDC's own record-review hours by record bucket, the "voucher the software" pitch is dropped in favour of pricing the product as overhead a lawyer absorbs inside the hourly fee, and the post-affirmance TRAP 48.4 letter and out-of-time appeal/PDR screen move up the priority list because the CCA's tables show those claims are a large share of what habeas actually wins.

Executive summary

The two personas in a sentence each. The *direct-appeal attorney* — one of **134 lawyers board-certified in criminal appellate law** as of December 31, 2025, a lawyer in a Harris or Dallas public defender appellate division, or one of the few dozen private lawyers who take ten or more appointed appeals a year — inherits a finished case at day 30–120 after sentencing, receives the clerk's and reporter's records as PDFs, and must "fully review the appellate record for all reviewable errors" and brief them, or honestly certify under *Anders* that there are none (SBOT Attorney Statistical Profile 2025-26; TIDC Appellate Addendum; Performance Guidelines 9.5(G)). The *writ attorney* — a solo or small-firm specialist retained by a family, a Harris County Public Defender post-conviction lawyer, a clinic attorney, or (for capital cases only) one of the Office of Capital and Forensic Writs' 14 attorneys — must decide whether a record and the facts outside it support an Article 11.07 application, then build one exhaustive, form-compliant filing on the CCA's 2018 form, because §4 bars a second, TRAP 79.2(d) bars rehearing of a denial, and the federal one-year clock is tolled only while a "properly filed" state writ is pending (Falkenberg, *Article 11.07 Writs of Habeas Corpus*, Harris County PD, rev. May 2023; 11.07 form, rev. 2018; FY25 Annual Report of the Judicial Support Agencies).

The jobs the product should own. Five, the same five for both personas in different proportions, and now each is anchored to a primary document. First, the preserved-error and issue audit of the entire record — Guideline 9.5(G)'s "fully review the appellate record for all reviewable errors" and the TIDC Delphi panel's "Record Review" task, which it made "the single most time consuming activity for appellate counsel" on long records (Performance Guidelines; Addendum p. 12); the engine's `preserved_error` screen and per-finding `preserved` / `harmStandard` / `vehicle` fields already express it (analysis.service.ts; analysis-fields.ts). Second, the diligence record: volume-by-volume proof of what was read, which both an *Anders* brief and an 11.07 inventory stand on. Third, the writ viability screen and grounds inventory organised the way the 2018 CCA form demands (two pages per ground, item 15's explanation of why any prior writ omitted the ground, item 17's time-credit exhaustion), with the trial-counsel affidavit topics the IAC findings imply (11.07 form). Fourth, the clock,

computed from the rule text now read directly — TRAP 26.2, 26.3, 35.2, 49.1, 68.2, 73.4(b)(5), 73.5 — and labelled jurisdictional or discretionary (TRAP, Feb. 6, 2026 compilation). Fifth, in a later phase, verification of the lawyer's own record citations, which proposed TRAP 9.1(d) would turn from good practice into a signed representation (Misc. Docket 26-9054). The product should not own research, argument drafting, or filing: vLex Fastcase is free to every Texas attorney through the State Bar, and the roadmap already forbids the research pitch (texasbar.com, "Free Legal Research"; professional_tier_expansion.md).

The gap in today's tools. Not one vendor pricing or feature page could be read this pass either — every vendor host was refused at the proxy — so the tools landscape stays secondary and is labelled so throughout. What is primary is the demand side: Texas criminal lawyers are the least AI-adopting segment of the bar (47%), ChatGPT and Copilot dominate what they do use (63% and 44% of AI users), Westlaw/CoCounsel is the most-used legal-specific tool at 30%, and respondents said in open comments they "would use AI much more broadly if citation accuracy were solved" (SBOT 2026 AI Survey). Appointed appellate pay runs at roughly **27–42% of the $368 statewide private median hourly rate** (SBOT 2025 Income and Hourly Rate Report; county schedules below), and no county plan read this pass reimburses software, research subscriptions or AI tools. Reported incumbent prices — CoCounsel bundles in the hundreds of dollars per seat per month, Clearbrief at $150 a month or $300 a brief, TypeLaw at $895 a brief — remain unverified third-party figures, but every one of them is priced for a buyer earning the private median, not the appointed rate.

The plan's phases. Phase 0 re-runs the eval gate on prompt set v2 and the production model, adds a direct-appeal reference ledger labelled by a board-certified appellate lawyer, and adopts the TIDC record-length buckets as the product's size taxonomy. Phase 1 ships **Counsel Review at $199 per record** on the existing Stripe Checkout, upload, pipeline and PDF rails: bar-number sign-up, a matter form keyed to vehicle, TAMES-volume recognition at upload, a Part B-first packet carrying the TRAP clock computed from the rule text, an *Anders* diligence appendix phrased as process, 11.07 findings grouped by candidate ground and mapped to the 2018 form's items, an affidavit-topics list, and a TRAP 48.4 post-affirmance checklist. Phase 2 ships the **Record Desk**: the internal QA side-by-side viewer exposed read-only to the ATTORNEY role, a statement-of-facts cite-table export, an 11.07 form-fit export with TRAP 73.1 checks, a TRAP 9.4(i) word-budget helper using the rule's own exclusion list, a per-matter deadline calendar, a verification log drafted to the proposed 9.1(d) representation, and the **Advocate** seat. Phase 3 ships **Chambers** office tenancy for public defender appellate divisions and clinics, with a pilot outcome metric taken from the Addendum (record-review and total hours by record bucket), plus the writ investigation layer. The sequencing and roughly nine engineering-week estimate of the professional-tier document stand, with the preserved-error screen already shipped in prompt set v2 (professional_tier_expansion.md §5.3, §6.1; analysis.service.ts).

Decisions the founder must make.

Decision	Recommendation in this report	Why it is on the critical path
Per-record first, seats second	Confirm Counsel Review at $199 before any Advocate/Chambers build	$199 is about 1.6 hours at Harris's $125 appellate rate and under 2 hours at Dallas's $100; it must be absorbable inside the hourly fee because Art. 26.05(c) tells counties to set rates "taking into consideration reasonable and necessary overhead costs" and Bexar/El Paso treat research tooling as that overhead (Fair Defense Laws 2025, Art. 26.05(c); Bexar order)
Drop the voucherability pitch	Do not tell appointed counsel the product is a reimbursable expense	Art. 26.05(d) limits mandatory reimbursement to "reasonable and necessary expenses, including expenses for investigation and for mental health and other experts"; none of ten county plans lists software; two exclude it expressly (Fair Defense Laws 2025)
Brand for procurement	Adopt a professional sub-brand before the first PDO pilot proposal	A chief defender's budget memo and a county purchasing file are the surfaces PRD R-5 warned about (mvp_v1_prd.md §8)

Decision	Recommendation in this report	Why it is on the critical path
A direct-appeal reference ledger	Pay a board-certified appellate lawyer to label a second trial record for preserved error and harm, in the 100–500-page bucket where 41% of appointed appeals fall	The Gary ledger's five canaries are writ-weighted; Persona 1's primary screen has never been scored against a direct-appeal issue list (manual_vs_engine_gary_2026-09-27.md; Addendum Table 5-2)
Expose the verification view	Yes, in Phase 2, read-only, scoped to findings and pages — not the graph, chat or drafting	Proposed TRAP 9.1(d) names "record citations" among the things a signer represents are not fabricated; a page-anchored verification view is the direct answer (Misc. Docket 26-9054)
Pilot outcome metric	Measure hours from record-filed to brief-filed, by Addendum record bucket, against the Delphi and current-practice baselines	TIDC's own study is the language a TIDC grant reviewer and a chief defender both speak (Addendum Figs. 3-1, 4-2b)
Part A as a client letter for lawyers	Off by default; counsel-reviewed copy; never routed to the family without the lawyer	Keeps the family-facing voice inside the attorney relationship and avoids channel-conflict optics at TCDLA
PDR scope	Exclude PDR merits work; include the PDR clock (TRAP 68.2) and the TRAP 48.4 / Guideline 9.6 post-affirmance letter	The engine reads records, not court-of-appeals opinions; the FY2025 grant-rate spike to 14.6% is a Third Court/Kinney County batch, not a trend (CCA FY2025)
Capital cases	Keep the 11.071 exclusion from the PRD	OCFW handles "over 70%" of initial 11.071 cases with 14 attorneys; the CCA received only 10 new 11.071 writs in FY2025 (FY25 Judicial Support report; CCA FY2025)

What changed with primary sources

The earlier edition was written from search-engine extracts because the egress proxy blocked the primary hosts. This pass read the documents themselves wherever the proxy allowed (txcourts.gov, tidc.texas.gov, tidc.tamu.edu, texasbar.com, tcdla.com, blog.texasbar.com — all without the `www.` prefix). The corrections that matter to the plan are these; smaller ones are carried inline in the sections that follow.

Topic	Earlier edition said (snippet-sourced)	Primary source says	Effect on the plan
Hours per appeal	TIDC addendum "could not be read"; proxies from California (1 hr/50 pp) and Washington	Delphi hours per appeal 34.8 / 46.4 / 69.1 / 100.2 by record bucket (<100 / 100–500 / 500–1,500 / >1,500 pp); current practice 17.2 / 31.4 / 49.5 / 97.3 hours through COA mandate; Delphi record review 3 / 9 / 17 / 40 hours; caseload cap 40 / 30 / 20 / 14, weighted 31.2; 36% / 41% / 22% / 1% of appointed appeals by bucket (Addendum)	Pricing by record bucket, pilot metric, and the `/for-counsel` time claim all get a Texas regulator's numbers; the 5,000-page cap is almost never reached (99% of appointed appeals are under 1,500 pages)
Direct-appeal volume	"Plausibly 4,000–6,000 a year" (extrapolated)	3,607 new criminal cases filed and 4,181 disposed in the courts of appeals in FY2025; 3,586 filed FY2024; 3,714 FY2023 (COA Activity Detail 2025)	Persona 1's matter pool is ~3,600 a year, lower than assumed; the professional-tier volumes are still small shares of it

Topic	Earlier edition said (snippet-sourced)	Primary source says	Effect on the plan
Reversal rate	Harris PDO 5% vs 3% (2013 evaluation)	Full reversals 2.6% of all criminal dispositions FY2025 (107/4,181), 4.3% of merits dispositions; FY2022–FY2024: 4.1%, 2.9%, 4.0%; affirmed 48%; dismissed 18% (COA Activity Detail; OCA FY2024 report)	The *Anders*/diligence framing matters more than a "win more" framing; the product's value is finding the arguable issue in a docket where most appeals lose
PDR grant rate	5.9% (FY2024 only)	8.0% (FY20), 11.2% (FY21), 8.8% (FY22), 6.4% (FY23), 5.9% (FY24), 14.6% (FY25, driven by 59 Third Court grants and 23 Kinney County grants) (CCA FY2020–FY2025)	PDR stays clock-only; no merits product
11.07 disposition mix	57 grants, 270 non-compliance dismissals "roughly 13% of filings"; column headers cut off	2,341 dispositions: denied without written order 981 (41.9%), §4 dismissals 411 (17.6%), non-compliance 270 (11.5%), remands 183 (7.8%), filed and set 103 (4.4%), "direct appeal pending" 70; filed-and-set outcomes: 57 relief granted, 21 out-of-time appeals, 27 out-of-time PDRs (CCA FY2025)	Out-of-time appeal/PDR restoration (the consumer FR-11 screen) is ~40% of what the CCA grants; the TRAP 48.4 letter checklist moves to Phase 1
11.07 intake	3,325 (FY2021, Falkenberg) in the professional-tier document; ~2,100 in the earlier report	"Habeas Corpus Received" added: 2,940 (FY20), 2,834 (FY21), 2,334 (FY22), 2,040 (FY23), 2,126 (FY24), 2,111 (FY25); Harris 334, Dallas 259, Tarrant 209, Bexar 126 of 2,560 county-attributed FY2025 filings (CCA reports)	Four counties are 36% of the docket; channel focus confirmed
Harris fee line	"Uncapped hourly since February 2023" (no rate)	$125/hour for non-capital appeal, PDR, new brief after PDR, oral argument and 11.07 writ; $150 capital/11.071; "no presumptive maximums"; six-minute increments; the superseded 2007 voucher assumed 30 hours ($2,250 at $75) for a standard appeal and 60 for a >800-page transcript (Harris District fee schedule; 2007 voucher)	Harris is the hourly-uncapped test bed; the product sells capacity there, not per-case yield
Dallas fee line	Not found	$100/hour; jury-trial appeal range $1,800–$3,500; *Anders* brief $400–$1,000; "standard approved expenses: reading record, research, writing the brief"; misdemeanor appeal $1,250 flat, $3,500 maximum (Dallas District fee schedule; Dallas County Court schedule)	Dallas is the flat-range test bed where cutting hours raises yield
Travis fee line	"$2,000 flat felony appeal, $1,000 *Anders*"	$155/hour for appellate and writ assignments on or after May 1, 2025 (felony); $75/hour misdemeanor; writ hearings $250 (Travis fee guidelines)	The earlier flat-fee arithmetic for Travis is withdrawn
Bexar fee line	"Caps Appeals and PDRs at $6,500"	$60/$70/$85 per hour out of court by degree, $165 in court, cap $7,200; capital $165/$225; PDR requires prior court approval and a separate voucher; "computer research" is non-reimbursable overhead; anyone who "assisted the attorney of record" must be named on the voucher (Bexar order, June 2025)	Kills the voucherability pitch; the product must produce no brief text a lawyer would have to disclose as assistance

Topic	Earlier edition said (snippet-sourced)	Primary source says	Effect on the plan
HB 1445	"Requires every county schedule to state fixed or min/max rates, include an itemization form, and pay within 45 days"	HB 1445 amended only Art. 26.05(c) to let a managed-assigned-counsel director's "designee" approve or reduce vouchers; the rate-schedule, itemization and 45-day provisions pre-date it (Fair Defense Laws 2025, p. 48)	No new billing artifact; the activity-log export remains useful but is not legislatively driven
TRAP amendments	January 2026 Rule 9 changes "not read"; AI amendments "expected October 2026"	Jan. 1, 2026 order (25-9104) re-lettered the CCA word-limit tiers only (briefs 15,000, PDR 4,500, PDR reply 2,400, reply brief 7,500 — unchanged); June 26, 2026 order (26-9054) proposes TRAP 9.1(d)–(f) with a representation that "legal citations, quotations, holdings, and record citations are not fabricated," proportionate sanctions, and a comment aimed at AI; comments closed Sept. 1, 2026; no final order posted as of Oct. 18, 2026 (25-9104; 26-9054; Administrative Orders 2026)	Verification-log wording drafts to the proposed text; marketing says "proposed, finalisation pending"
11.07 form	2018 version via a mirror; summary sheet unknown	The CCA's forms page posts exactly the "Revised 2018" form; every applicant "including attorneys" must use it; TRAP 73.4(b)(3) specifies the clerk's summary sheet contents; no 2024–2026 order touches TRAP 73 or the form (CCA forms page; 11.07 form; CCA Misc. Docket Orders)	The form-fit export can be built against a stable target
AI adoption	Clio/Smokeball figures (71% solos; 33% comfortable)	SBOT 2026: 62% of Texas attorneys use AI (30% in 2024); criminal law 47% (31% in 2024), the only practice area under 50%; legal research 53% of uses; drafting 40% (SBOT 2026 AI Survey)	Verification-first positioning is the fit for the least-adopting segment
Market counts	132–134 certified (directories); TCDLA 3,864	134 board-certified criminal appellate (133 in-state); 776 criminal law; Appellate Section 2,046; Criminal Justice Section 2,963; 118,430 active attorneys; TCDLA 3,750–3,800+; Rusty Duncan 850–1,000; Rusty 2026 booth $1,500 (SBOT profile; TCDLA Rusty 2026 packet)	Channel budget revised upward by $500 for the booth
Private rates	$368 median; Clio $221 criminal	$368 median (2025); Houston $377, DFW $388, Austin $398, San Antonio $332; the report has no practice-area or solo table (SBOT 2025 rate report)	Appointed rates are 27–42% of the private median — the yield argument
Performance Guidelines	"Guideline 10.x, 2021 update"	Guidelines 9.1–9.8 in the July 2011 Texas Bar Journal reprint; 9.5(F) record-integrity check, 9.5(G) full review for all reviewable errors, 9.6 certified-mail PDR advice; no "Anders" wording; no 2021 revision located (Performance Guidelines)	The diligence appendix maps to named guideline duties
OCFW	12 attorneys; 8.5 cases per attorney (2018)	14 attorneys, 10 mitigation specialists, 6 paralegals (FY2025, up from 12/7/3); "over 70%" of initial 11.071; 8 forensic-writ clients of 70+ FSC referrals; CCA received 10 new 11.071 writs in FY2025 vs 25 in FY2020 (FY25 Judicial Support report; CCA reports)	Capital exclusion confirmed as a non-market, not just a red line

Topic	Earlier edition said (snippet-sourced)	Primary source says	Effect on the plan
TypeLaw pricing	Called "official"	Vendor page not read; figure is a search summary with a conflicting G2 number	Every vendor price is now labelled secondary

Three things did not change and deserve saying. The retained-writ fee shape ($15,000–$45,000 per matter, roughly half of it investigation) still rests on three firm websites that were not re-read; the engine facts rest on repository documents read in full; and the Everlaw for Good eligibility finding that underpins the professional-tier document's "no free floor" argument remains secondary because everlaw.com was blocked.

How much to trust the numbers in this report

Figures in this edition fall into three classes, and the text labels the second and third inline. **Primary** figures were read from the document itself on 2026-10-18: the OCA Courts of Appeals activity workbooks and FY2022–FY2024 narrative reports; the CCA activity reports FY2020–FY2025; the TRAP compilation dated Feb. 6, 2026 and the 2024–2026 amendment orders; the CCA's 2018 Article 11.07 form; the TIDC Appellate Addendum (2016) and 2015 guidelines; ten counties' fee schedules and plan narratives on TIDC's plan portal; TIDC's *Fair Defense Laws 2025–2027* compilation (the source for Art. 26.05 and 11.071 §2A text); the 2011 Performance Guidelines reprint; the State Bar's 2025 rate report, 2025-26 statistical profile, 2026 AI survey, member-benefit pages and sections list; TCDLA's marketing, Voice, exhibitor and Rusty Duncan 2026 kits and join page; the OCFW sections of the FY2021–FY2025 Judicial Support Agencies reports; the Harris County PD's 11.07 paper hosted by the CCA; *Ex parte Thompson* and the *Mallet* concurrence; the Udashen innocence-standards slides; IPTX and UH Innocence Project reports to TIDC; TDCJ Executive Directive ED-03.32; and the Texas Bar Blog's summary of Ethics Opinion 705. **Secondary** figures are search-engine extracts of pages the proxy refused, kept where no primary replaced them: statute text (arts. 11.07, 11.071 timelines, 11.072, 11.073, 11.074, 39.14; Gov't Code §52.047, §552.108; TRAIGA), all vendor pricing and feature claims, federal case law on AEDPA, federal AI standing orders, the full text of Ethics Opinions 705 and 657, TDCJ policies BP-03.81/03.91, county transcript rates, public defender headcounts and budgets, writ retainer ranges, and the out-of-state caseload proxies. **Estimates** are arithmetic on primary figures (an effective hourly rate at a flat fee, a dollar cost per Delphi-compliant appeal) and are marked as such. The repository documents and code are cited by path and were read in full. The practical rule is unchanged from the earlier edition: the direction of every finding is well supported; any secondary figure should be re-read before it appears in a pitch deck or pricing page, and the remaining-gaps table at the end lists exactly which hosts still have to be reached.

Persona 1: the direct-appeal lawyer works a TRAP clock on 35–100 hours a county pays for in part

Who they are. Direct-appeal work in Texas is split among a small specialist cadre, urban public defender appellate divisions, private appointed counsel on county lists, and prosecutors doing the mirror-image job. The State Bar counted **134 attorneys board-certified in Criminal Appellate Law** as of December 31, 2025 (133 in-state), up from 125 a decade earlier, against 776 in Criminal Law, down from 831; the Appellate Section had 2,046 members and the Criminal Justice Section 2,963, both smaller than in 2015-16 (SBOT Attorney Statistical Profile 2025-26). The appointed segment is more concentrated than any directory count suggests: TIDC's appellate study found that "during FY 2015, only 55 Texas attorneys handled 10 or more court-appointed appellate cases," and could recruit only six private attorneys for timekeeping; its data came from the two Appellate Public Defender Offices in Dallas and Harris County, which supplied 607 and 250 cases with mandates between January 2012 and February 2016 — roughly 150 and 60 a year with known record lengths (estimate from the 4.1-year window) (Addendum pp. 3–4, viii). Harris County's plan places the Public Defender "on every Court's requested list" (Harris District Court Plan §10.5.4). Current division headcounts stayed behind blocked county hosts: the 2011 Harris brochure's "division chief, ten assistant public defenders" and ~350 projected appeals, the 2013

evaluation's 5% reversal rate, and Dallas County's "five attorneys and one senior legal secretary" are all secondary (Harris PDO brochure, 2011, not fetched; Dallas County PD Appellate Division, blocked). County appointment lists set the entry bar: Dallas requires "two complete state court appellate briefs in criminal cases (excluding Anders briefs)" from the prior five years; Travis's A panel requires two prior felony briefs and says "An Anders brief alone will NOT satisfy the brief submission requirement"; Fort Bend requires three years' licensure and three authored briefs (Dallas plan; Travis plan; Fort Bend qualifications addendum). The professional-tier document's archetype — "an appellate division is typically two to five lawyers carrying every appeal an office of dozens generates" — holds (professional_tier_expansion.md §3.1).

The docket they work. The courts of appeals received **3,607 new criminal cases in FY2025** (3,586 in FY2024; 3,714 in FY2023; 3,244 in FY2022) and disposed of 4,181, with 3,015 pending at year end and an average of 9.27 months from filing to disposition; the criminal clearance rate recovered from 81% in FY2022 to 96.7% in FY2025 (COA Activity Detail 2025; COA Activity Detail 2022). Outcomes are lopsided: in FY2025, 2,018 criminal dispositions were plain affirmances (48%), 356 were modified and affirmed, 762 were dismissed (18%), 913 were "otherwise disposed," and **107 were full reversals — 2.6% of all criminal dispositions and 4.3% of merits dispositions** (estimate computed from the workbook; FY2022–FY2024 full-reversal rates were 4.1%, 2.9% and 4.0%). OCA's own FY2024 chart reads Affirmed 50%, Modified 2%, Reversed 4%, Dismissed 21%, Other 23% (OCA Annual Statistical Report FY2024, p. 76). OCA reports no *Anders* counts and no pro se share for the courts of appeals; the opinion-summary workbooks count opinions by type and publication status (the First Court issued 947 opinions in FY2025, 726 published) but carry no *Anders* field (COA Opinion Summary 2025). TIDC's funnel from the previous decade gives the proportion: of 1,429,714 felony and Class A/B misdemeanor dispositions in FY2013–14, "only 11,917 cases reached the second phase: Proceedings in the Court of Appeals," and about 27% (2,512) went on to the CCA stage (Addendum pp. 5–6); the Addendum's two-year window does not reconcile exactly with OCA's annual filings and the OCA count is the one to use.

Caseload and hours — the regulator's own numbers. The December 2016 Appellate Addendum to TIDC's caseload guidelines, prepared by Texas A&M's Public Policy Research Institute from 857 Dallas and Harris PDO appeals and a twelve-member Delphi panel averaging 22.9 years in practice, is the single most useful document in this report and was unread in the earlier edition. Its headline recommendation: a full-time appellate lawyer should carry **no more than 40 appeals a year with records under 100 pages, 30 at 100–500 pages, 20 at 500–1,500 pages, and 14 over 1,500 pages**, which weights to 31.2 a year on the observed mix of 36% / 41% / 22% / 1% (Addendum pp. ix, 13–17). The hours behind that are the product's economics: Delphi hours per case of **34.8 / 46.4 / 69.1 / 100.2** against 1,389 case-related hours in a 2,087-hour year; current-practice hours actually spent through court-of-appeals mandate of **17.2 / 31.4 / 49.5 / 97.3**, so "a reporter's record with less than 100 pages requires about 17 hours to reach an appellate court mandate, while a case with more than 1500 pages requires almost 100 hours"; and, by task in the court of appeals, Delphi record review of **3 / 9 / 17 / 40 hours** and brief writing of 12 / 16 / 30 / 35 hours, with the panel concluding that "the review of records exceeding 1500 pages in length should be the single most time consuming activity for appellate counsel" (Addendum pp. 9–13). The study chose record length as its difficulty metric because it "is one of the few consistently available indicators of difficulty and attorney effort available for appellate cases" and is "widely used as a caseload metric among appellate defender offices"; it states no pages-per-hour rate (the implied 30–90 pages an hour for a 500–1,500-page record is an estimate from its tables). It also recorded that oral argument happens in only 4% of court-of-appeals cases against a Delphi ideal of 33–40%, and that current full-time caseloads of 67 / 41 / 26 / 14 exceed its recommendation by 40%, 27%, 23% and 0% (Addendum pp. 10, 14). The 2015 trial-level guidelines explicitly excluded appeals (TIDC Guidelines 2015). The out-of-state proxies the earlier edition used — California's one hour per 50 pages, Washington's 36 appeals at 350-page transcripts and 51-hour weeks — are retained only as context and remain secondary (CAP-LA guidelines, not re-read; WA OPD decision package, not re-read).

The jobs to be done. The State Bar's Performance Guidelines state them. Appellate counsel must "immediately consult with the trial court to ascertain relevant information concerning the perfection of the appeal and relevant filing deadlines," "immediately contact trial counsel," submit designations of the clerk's and reporter's records, "review the clerk's and reporter's records to determine whether they are true, correct and complete in all respects" and object to errors at once, then "fully review the appellate record for all reviewable errors, prepare a well researched and drafted appellate brief, file the brief in a timely manner," consider a reply brief or rehearing, and after an adverse decision "advise the client in writing

by certified mail of the client's right to file a petition for discretionary review," explaining that an indigent client has no right to appointed counsel for the PDR but may request one (Performance Guidelines 9.5–9.6, Texas Bar Journal July 2011). The rules put teeth on each. TRAP 38.1(i) requires "a clear and concise argument for the contentions made, with appropriate citations to authorities and to the record"; TRAP 44.2(a) requires reversal for constitutional error "unless the court determines beyond a reasonable doubt that the error did not contribute to the conviction or punishment," while 44.2(b) says other error "that does not affect substantial rights must be disregarded" (TRAP 38.1, 44.2). TRAP 48.4 requires counsel, within five days of the opinion, to send the client the opinion and notice of the pro se PDR right by certified mail with return receipt and certify compliance; the Harris County PD paper reports that "the Court still sees valid out-of-time PDR claims based on counsel errors on a weekly basis" fifteen-plus years after the rule (Falkenberg p. 25). TRAP 33.1's preservation requirement and the practitioners' framing of the job as a preserved-error audit are carried from the earlier edition and remain secondary (Bennett & Bennett, not re-read; GMSR, not re-read). The jobs, then: audit the whole record for preserved error and rank by harm standard; decide early whether this is a merits brief or an *Anders* brief; write a statement of facts and argument in which every factual sentence carries a record cite; manage the clock; and discharge the client-communication duties the CCA enforces by habeas.

The workflow and its clock, from the rule text. The notice of appeal is due "within 30 days after the day sentence is imposed or suspended in open court," or 90 days "if the defendant timely files a motion for new trial"; the court of appeals may extend if, within 15 days after the deadline, the party files the notice in the trial court and a Rule 10.5(b) motion in the appellate court (TRAP 26.2, 26.3). The record is due 60 days after sentencing, 120 if a timely motion for new trial is filed and denied, or 60 after an order granting one (TRAP 35.2). The appellant's brief is due 30 days after the later of the records (TRAP 38.6 was not transcribed in this pass; the 30-day figure is from the earlier edition's secondary source) (TRAP 38.6, state-rules.com, not re-read). A motion for rehearing "may be filed within 15 days after the court of appeals' judgment or order is rendered" and "will not be granted unless a response has been filed or requested by the court" (TRAP 49.1–49.2). A PDR "must be filed within 30 days after either the day the court of appeals' judgment was rendered or the day the last timely motion for rehearing or timely motion for en banc reconsideration was overruled," with a 15-day extension window, and must contain separately numbered grounds "with record page references if petitioner has the record," a statement of the case that "should seldom exceed half a page," and the court of appeals' opinion as an appendix (TRAP 68.2, 68.4). Word limits, re-lettered but not changed on January 1, 2026, are 15,000 words for a brief, 7,500 for a reply, 4,500 for a PDR and 2,400 for a PDR reply, counting everything "except the following: caption, identity of parties and counsel, statement regarding oral argument, table of contents, index of authorities, statement of the case, statement of issues presented, statement of jurisdiction, statement of procedural history, signature, proof of service, certification, certificate of compliance, and appendix," and the certifier "may rely on the word count of the computer program used to prepare the document" (TRAP 9.4(i); Misc. Docket 25-9104). The CCA's grant rate on PDRs filed from the courts of appeals was **8.0% (FY2020), 11.2% (FY2021), 8.8% (FY2022), 6.4% (FY2023), 5.9% (FY2024) and 14.6% (FY2025)**, the last driven by 59 grants from the Third Court and 23 of 32 from Kinney County; Harris produced 113 PDRs and 7 grants, Tarrant 99 and none (CCA Activity Detail FY2025; FY2020–FY2024 reports). Of granted PDRs disposed in FY2024, OCA reports 18% affirmed, 43% reversed and 31% vacated (OCA FY2024 report p. 71). The CCA's operating procedures add that "first motions for extension of time are usually granted," oral argument is 20 minutes a side, and opinions issue Wednesdays at 9:00 a.m. (CCA Internal Operating Procedures, rev. Jan. 2025). Record delivery through the TAMES Attorney Portal, the Uniform Format Manual and the 2025 exhibit guidelines are carried from the earlier edition as secondary (14th COA Attorney Record Portal, not re-read), as are the *Kelly v. State* duties when filing an *Anders* brief (Kelly v. State, vLex, not re-read).

Economics, from the fee schedules. Appointed appellate pay in the ten counties read is the strongest fact in this report, and it comes in two shapes that imply two different value propositions.

County (document date)	Appellate line	Writ/PDR line	Expense and overhead language	Source
Harris district courts (Feb. 27, 2023)	$125/hour non-capital appeal, >5-day trial or >800-page transcript, new brief after PDR, oral argument; $150 capital; "no presumptive maximums"; six-minute increments	PDR $125; 11.07 writ $125; 11.071 $150; DNA motion $125	"Travel and Expenses: Paid per Harris County guidelines. Receipts must be provided"; no *Anders* line; vouchers within 21 days	Harris District fee schedule
Harris county courts, MAC (Oct. 29, 2025)	"Appeals and post-trial writs — $100/hr"; oral argument and writ hearings $140	same	"The hourly rates set by these rules contemplate and are inclusive of administrative and overhead costs"; no pay for work by others the attorney employs	Harris County Court plan
Dallas district courts (May 2023)	$100/hour; jury-trial appeal $1,800–$3,500; *Anders* $400–$1,000; "Standard approved expenses: reading record, research, writing the brief"	—	Up to $750 expenses without prior approval; investigators $70/hr	Dallas District fee schedule
Dallas county courts	$100/hour; appeal with oral argument $1,250 flat, $3,500 maximum	—	$500 prior-approval threshold	Dallas County Court schedule
Travis (May 1, 2025)	$155/hour felony appellate and writ; $75/hour misdemeanor	writ hearings $250 fixed	Expenses need Program Administrator pre-approval; *Anders* brief alone does not qualify for the A panel	Travis fee guidelines
Bexar district courts (June 16, 2025)	Out of court $60 (SJF/3rd), $70 (2nd), $85 (1st); in court $165; cap $7,200; capital $165/$225	PDR needs prior court approval and a separate voucher	"Computer research … equipment … CLE" are overhead "and may not be additionally claimed"; brief must be attached to the voucher; anyone who assisted must be named	Bexar fee order
Tarrant district (Jan. 2023) / county (Oct. 15, 2025)	$50–$125/hour; misdemeanor appeals "not to exceed $1,800"	Post-conviction writ/DNA $50–$125; 64.01(c) DNA review $300 flat	Expenses "with or without prior court approval shall be reimbursed"	Tarrant District; Tarrant County
Collin district (Nov. 1, 2023) / county (June 1, 2026)	$3,500 appeal from trial; $2,000 other appeal; discretionary adjustment to $4,000; misdemeanor appeal $2,500 flat	writs $250	"Normal postage, copying, etc., are considered normal overhead"; paralegal work included in fixed rates; missed brief deadlines suspend counsel from the list	Collin District; Collin plan
Williamson (Mar. 26, 2023)	$155/hour, cap $7,500; excess needs advance approval	writ hearings with witnesses $250 extra	Art. 26.05/26.052 language	Williamson order
Montgomery (Oct. 2, 2020)	Appeals $90/hour; misdemeanor appeal $1,500 flat	appointment runs through PDR and CCA	Expenses without prior approval "will not automatically be reimbursed"	Montgomery District; Montgomery plan

County (document date)	Appellate line	Writ/PDR line	Expense and overhead language	Source
El Paso (Oct. 31, 2025)	$85/hour out of court, $100 in court for appeals to the Eighth Court or CCA	habeas $100 in court / $85 out	Equipment, e-filing fees, CLE are overhead; research beyond 3 hours (misdemeanor) or 6 (felony) needs an ex parte memorandum; transcripts reimbursed only with prior approval	El Paso schedule; El Paso plan
Fort Bend	No dollar schedule posted; the "fee schedule" file is a qualifications addendum	—	Expenses "only upon written motion and prior approval"	Fort Bend addendum

Put the Addendum's hours against these schedules and the two value propositions separate (all of the following are estimates computed from the two primary sources). In the flat or capped counties, cutting hours raises yield: a Dallas jury-trial appeal at the $3,500 top of the range covers Delphi hours of 34.8 for the smallest record at exactly $100 an hour, but a 500–1,500-page record at the Delphi 69.1 hours works out to **$51 an hour** (and $71 at the current-practice 49.5 hours); Collin's $3,500 flat is $75 an hour at 46.4 hours and $51 at 69.1; Tarrant's $1,800 misdemeanor cap is $52 an hour at 34.8 hours; Williamson's $155 rate hits its $7,500 cap at 48 hours, inside the Delphi allotment for anything over 500 pages; Bexar's $60–$85 out-of-court rates stay under the $7,200 cap through the 500–1,500 bucket. In the hourly-uncapped counties — Harris district courts, Travis, El Paso — a Delphi-compliant appeal bills about $4,350 (under 100 pages), $5,800 (100–500), $8,640 (500–1,500) and $12,525 (over 1,500) at Harris's $125, and a full 31.2-case year at 1,389 hours grosses roughly $174,000 before overhead; there the product sells capacity (more appeals inside the caseload cap) and cannot sell per-case income, because Opinion 705 forbids billing for hours AI saved (Texas Bar Blog on Opinion 705). Harris's own 2007 voucher is the historical hours assumption made explicit: a $2,250 presumptive maximum at $75 an hour for a standard appeal (30 hours) and $4,500 for a transcript over 800 pages (60 hours), brackets the Delphi 34.8–69.1 (Harris 2007 appeals voucher). Appointed rates of $100–$155 are 27–42% of the State Bar's $368 private median and Harris's $125 is a third of Houston's $377 (SBOT 2025 rate report). The statutory frame is Art. 26.05: fees are paid "based on the time and labor required, the complexity of the case, and the experience and ability of the appointed counsel" for, among other things, "preparation of an appellate brief and preparation and presentation of oral argument" and "preparation of a motion for rehearing"; each schedule must "state reasonable fixed rates or minimum and maximum hourly rates, taking into consideration reasonable and necessary overhead costs"; a voucher disapproved or not acted on within 60 days may be appealed to the regional presiding judge, and the commissioners court must pay within 45 days of the application — all of which pre-date HB 1445, whose only change (effective September 1, 2025) was to let a managed-assigned-counsel director's "designee" approve or reduce vouchers (Fair Defense Laws 2025, pp. 46–48). The earlier edition's figures for Midland ($200/hour to 20 hours) and the 81st/218th districts ($60–$120/hour to $4,500), Harris's appointed-counsel cost growth from $78.3M to $112.0M, the N.D. Tex. CJA rate of $175/hour with a $9,700 appeal maximum, and the Harris public-defender share of 17% of appointments are retained as secondary and were not re-read (Harris County Auditor review, blocked; Community Impact, not re-read). Private retainer ranges for Texas criminal appeals specifically were again not found in any primary source.

What they do today, and what is still unknown. The State Bar's 2026 survey is the first primary evidence of habit: 62% of Texas attorneys use AI, 47% of criminal lawyers do, legal research is the top use at 53%, drafting is 40%, ChatGPT is used by 63% of AI users and Copilot by 44%, and the sample skews toward exactly this persona (median age 58, 31% solo) (SBOT 2026 AI Survey). Structural facts stand: briefs are drafted in a word processor because the TRAP 9.4(i)(3) certificate relies on its count; filings go out as PDFs through eFileTexas; records arrive as per-volume PDFs. Whether appellate lawyers annotate in Acrobat or print, whether they build transcript digests, and how many hours go to each phase remain unsourced beyond the Addendum's task buckets, and belong in interviews.

Persona 2: the writ lawyer gets one shot, and the CCA's tables show what that shot usually buys

Who they are and the volume they face. Non-capital 11.07 habeas is a docket of about **2,100 applications a year** at the Court of Criminal Appeals: "Habeas Corpus Received" added 2,940 in FY2020, 2,834 in FY2021, 2,334 in FY2022, 2,040 in FY2023, 2,126 in FY2024 and 2,111 in FY2025, with 264 pending at the end of FY2025, plus about 205–370 supplemental 11.07 filings a year (CCA Activity Detail FY2025; FY2020). OCA's narrative calls FY2024's level "the lowest since at least 2001," and the Harris County PD paper's FY2021 figure of 3,325 new applications — the number the professional-tier document carried — appears to count all habeas matters rather than the "received" line, so the two are not in conflict so much as differently scoped (OCA FY2024 report p. 67–71; Falkenberg p. 12; professional_tier_expansion.md §8). Filings are concentrated where the personas are: Harris 334, Dallas 259, Tarrant 209 and Bexar 126 together were 36% of the 2,560 county-attributed habeas filings in FY2025, followed by Montgomery 69, Travis 64, Collin 63 and Jefferson 60 (CCA FY2025). The CCA does not report counsel-filed versus pro se applications in any year; the professional-tier document's "84% of applications from people without counsel" figure came from a Texas Defender Service report on 11.073 cases and remains secondary (professional_tier_expansion.md S9). Inside the Court, each application "is assigned a cause number and randomly assigned to one of seven staff lawyers who work exclusively on extraordinary writs," who write a memorandum and recommendation before the case is assigned to a judge (Falkenberg p. 12).

What the docket does with those applications is the fact the earlier edition could only half-read. In FY2025 the CCA's disposition table for non-capital applications totalled 2,341: **470 denied without written order on the Court's own review and 511 denied without written order on trial-court findings (together 41.9%); 411 dismissed under Art. 11.07 §4 (17.6%); 270 dismissed for non-compliance (11.5%); 183 remanded for an evidentiary hearing or affidavits (7.8%); 103 filed and set (4.4%)**; 70 dismissed because a direct appeal was pending; 42 because the sentence was discharged; 36 as moot; 24 because community supervision had not been revoked; 63 under abuse-of-writ orders (estimates of shares computed from the table) (CCA FY2025). The pattern is stable: non-compliance dismissals ran 213–299 a year and §4 dismissals 411–538 a year across FY2020–FY2025, while remands fell from 11% of dispositions in FY2020–21 to 8% in FY2025 (CCA FY2020–FY2024 reports). The filed-and-set outcomes show what habeas actually wins: of 117 filed-and-set dispositions in FY2025, 57 were relief granted (plus one in part), **21 were out-of-time appeals granted and 27 were out-of-time PDRs granted**, 4 were denials; the out-of-time grants were 45, 40 and 48 in FY2023–FY2025, roughly a third to 40% of filed-and-set dispositions each year (CCA FY2023–FY2025). OCA's gloss that "habeas corpus relief was granted in most of the cases that were filed and set" (98%) is true of the filed-and-set subset and should not be read as a grant rate on the docket, which is nearer 4% (OCA FY2024 report p. 71). Capital habeas is a separate and shrinking stream: new 11.071 writs received fell from 25 in FY2020 to 10 in FY2025, and OCFW — 14 attorneys, 10 mitigation specialists, 6 paralegals and 2 accountants, up from 12/7/3 in FY2022–FY2024 — represents "over 70%" of initial 11.071 applicants and 8 forensic-writ clients out of "over 70" Forensic Science Commission referrals since 2020 (FY25 Judicial Support report pp. 69–70; FY24). The innocence organisations are the other institutional actor: IPTX, running the Texas A&M and Texas Tech clinics under TIDC contract, logged **479 new requests in January–May 2025 and 776 in June–December 2025** — 1,255 in the year, roughly four times the ~190 per half-year of 2023–24 — against 106 cases under active investigation, 12 in active litigation and **605 requests awaiting screening** at year end; it won relief in three cases in 2025 (Causey's exoneration, Padron's vacatur and dismissal); UH's Innocence Project reports about 19,800 requests since inception; TIDC funds six law-school projects at $100,000 a year each; UT's clinic takes intake "through the mail" only and "does not accept requests for assistance from third parties, including friends and family members" (IPTX report Jun–Dec 2025; IPTX report Jan–May 2025; UH Innocence Project report; TIDC innocence projects; UT AIC report). Harris County's Public Defender has a dedicated post-conviction practice whose lawyer authors the CCA-hosted 11.07 paper (Falkenberg); the Dallas PD's 2008 withdrawal from 11.07 appointments and the private writ bar's size remain secondary and unknown respectively.

Economics. There is no constitutional right to habeas counsel (*Pennsylvania v. Finley*; *Ex parte Mines*); a trial court may appoint counsel "when the trial court concludes that the interests of justice require representation" under arts. 1.051(d)(3) and 26.04(c), "typically" does so when the CCA remands for a live hearing, and must do so under Art. 11.074 when the State represents the applicant "is not guilty, is guilty of only a lesser offense, or was convicted or sentenced under a law

that has been found unconstitutional"; filing fees are prohibited (Falkenberg pp. 6, 9–10). When counsel is appointed, the county schedules pay the same lines as appeals: Harris $125 an hour for an 11.07 writ and $150 for 11.071, Travis $155, Tarrant $50–$125, El Paso $85/$100, Collin $250 per writ (county schedules above). Capital 11.071 counsel appointed outside OCFW is paid by the convicting court, with state reimbursement to the county capped at **$25,000 per application** for fees and expenses together and the excess "the obligation of the county"; at Harris's $150 that cap is about 167 attorney hours including any expert spend (estimate) (Fair Defense Laws 2025, Art. 11.071 §2A, pp. 12–14). The retained-fee shape from three firm websites — a paid consultation, "at least $10,000" to investigate, "at least $15,000" to file; $15,000–$45,000 with most around $30,000, roughly half investigation — was not re-read and stays secondary (Bennett & Bennett, not re-read; Chris Perri Law, not re-read). Two primary facts sharpen the investigation phase's cost. An indigent appellant gets a free record only "[w]ithin the time for perfecting the appeal" under TRAP 20.2; there is no parallel rule for an 11.07 applicant, Texas and Fifth Circuit cases deny a free transcript for collateral attack absent a non-frivolous claim and specific need (secondary), and a 1973 Attorney General opinion noted that Art. 11.07 "fails to specifically provide payment to the court reporter in the case of an indigent petitioner" (secondary) (TRAP 20.2; 14th COA opinion quoting *Escobar*, blocked). The only transcript rate located — Tarrant County's $6.00 a page for an original and two copies in indigent cases, effective December 15, 2025 — is a snippet of a local order on the OCA portal the proxy refused; at that rate a 2,000-page record bought new costs about $12,000 (estimate) (Tarrant order, topics.txcourts.gov, blocked). The practical route is the appellate record already prepared for the direct appeal, which is why the consumer product's records guidance says so (mvp_v1_prd.md US-2).

The workflow and its clock. The application goes to the convicting court on the CCA's form; after the State's answer the court designates controverted issues or the clerk forwards the record (the answer and designation periods are statute text the proxy blocked and are carried from the earlier edition as secondary); designated issues must be resolved "within 180 days from the date of receipt of the application by the State," and "[o]n the 181st day … the district clerk shall forward the writ record to this Court unless the district court has received an extension of time" (TRAP 73.4(b)(5), 73.5). The clerk's transmittal must carry a summary sheet stating the court, judge, whether a hearing was held, whether findings were made, the recommendation, and "name of counsel if applicant is represented" (TRAP 73.4(b)(3)). Fact issues are resolved by "affidavits, depositions, interrogatories, additional forensic testing, and hearings, as well as using personal recollection," a hearing reporter must prepare the transcript within 15 days, and "[w]rit records regularly reach the Court without transcripts from the hearing or any indication that a live hearing occurred" (Falkenberg p. 10). The Court then votes "to deny, dismiss, remand, hold, file and set, or grant"; "[w]rit applications are routinely remanded for findings and resolution when they allege facts, which, if true, could entitle the applicant to relief," usually with 90 days for the habeas court; applications "that do not 'allege facts' are routinely denied without written order"; a dismissal is non-merits and a denial is "a final adjudication"; TRAP 79.2(d) bars a motion for rehearing, though a "suggestion that the Court reconsider on its own motion" gets a merits ruling (Falkenberg pp. 12–14; TRAP 73.6). The CCA "may deny relief based upon its own review of the application" and "may dismiss an application that does not comply with these rules" (TRAP 73.2, 73.6). Section 4 bars a later application on the same conviction unless the factual or legal basis was unavailable or the innocence gateway is met; a writ seeking only an out-of-time appeal or PDR does not "challenge the conviction" and so does not trigger §4, and when an out-of-time appeal is granted the other claims are dismissed under *Ex parte Torres* (Falkenberg pp. 15–16). Jurisdiction attaches only when the conviction is final: "[i]f the case is pending on direct appeal or discretionary review, the conviction is not final and will not be final until the appellate mandate issues" (*Ex parte Johnson*), which is why 70 applications were dismissed in FY2025 as "direct appeal pending" (Falkenberg p. 4; CCA FY2025). Federally, the Fifth Circuit's rules remain snippet-sourced because every federal host was blocked: no PDR means finality 30 days after the court of appeals' judgment, the mandate date is irrelevant (*Roberts v. Cockrell*; *Gonzalez v. Thaler*); a PDR refusal means finality when the 90-day certiorari window closes; an 11.07 filed before the mandate is not "properly filed" and tolls nothing (*Larry v. Dretke*, resting on *Ex parte Johnson*); a §4-dismissed subsequent writ that complied with filing rules still tolls (*Villegas v. Johnson*); the cert window after a state-habeas denial does not toll (*Ott v. Johnson*); equitable tolling follows *Holland* but only in "rare and exceptional circumstances" (Casemine on *Larry*, not re-read; Fifth Circuit opinions, blocked). The combined effect, an inference from the two sets of rules: the federal year starts on day 31 after the court-of-appeals judgment when no PDR is filed, but the state writ cannot be properly filed until the mandate issues, so the first weeks of the federal year run untolled; the PRD's deadline engine already states the tolling direction correctly (mvp_v1_prd.md FR-5). The Harris paper also

records that some jurisdictions require "a 'shell writ' containing only bare allegations before appointing counsel," that applicants file early placeholders "to avoid missing AEDPA deadlines," and that the CCA "no longer grants motions to dismiss writ applications without question" (*Ex parte Speckman*) (Falkenberg p. 11). Adjacent vehicles — 11.072 community-supervision writs decided by the trial court and appealed to the court of appeals, 11.09 misdemeanor writs — have no line in any CCA report, and their clocks (60 days from the State's answer in 11.072) stay secondary from the earlier edition (TDCAA 11.072 checklist, not re-read).

Inputs and outputs. The legally operative document is the CCA's form, and it is still the "Revised 2018" form, the only 11.07 form the CCA's forms page posts; no Miscellaneous Docket order from 2021 through 2026 touches TRAP 73 or the form, though the CCA re-constituted its Rules Advisory Committee in 2025 (CCA forms page; CCA Misc. Docket Orders; Misc. Docket 25-009). Its instructions are the product's spec: "All applicants and petitioners, including attorneys, must use the complete application form"; "Failure to follow these instructions may cause your entire application to be dismissed"; "Each ground shall begin on a new page, and the recitation of the facts supporting the ground shall be no longer than the two pages provided"; "Do not attach any additional pages for any ground"; legal argument goes in a separate memorandum certified not to exceed "15,000 words if computer-generated or 50 pages if not"; "A factual summary that merely references an attached memorandum or another ground for relief will not constitute a sufficient summary of the facts"; and "If the application form does not include all of the grounds for relief, additional grounds brought at a later date may be procedurally barred" (11.07 form, rev. 2018). Its eighteen items include what the application concerns (conviction, sentence, time credit, parole, "out-of-time appeal or PDR"), the plea and trial type, the direct appeal and PDR history, prior 11.07 applications with "why the current grounds were not presented and could not have been presented in your previous application," and time-credit exhaustion through TDCJ's dispute-resolution system; verification is by unsworn declaration or notarised oath, with a State Bar number for attorney petitioners and an aggravated-perjury warning (11.07 form). TRAP 73.1 adds the 14-point typeface, the certificate of compliance, and "[a]ny ground not raised on the form will not be considered" (TRAP 73.1). The Harris paper confirms the consequence: "Failure to certify to the word count in the memorandum and exceeding the two page per ground limit will cause a writ application to be peremptorily dismissed, as will not using the form altogether," except where the trial court recommends an agreed grant (Falkenberg p. 7). The "non-compliant white card" is practitioners' name for the card-form notice of that dismissal; the phrase appears only in a UT CLE session title and in no CCA document (secondary) (UT CLE CR18 brochure, blocked).

The inputs are the trial and appellate record, trial counsel's file and affidavit, the prosecutor's file, and expert material, and the primary sources now say how each is obtained. Trial counsel's file belongs to the former client, but Ethics Opinion 657 (secondary; the opinion host was blocked) says counsel "may not deliver to a former client documents provided to the lawyer pursuant to article 39.14(a) (other than the defendant's own statement)" and must redact 39.14(f)-protected information, so the State's discovery must be obtained anew from the prosecutor (Opinion 657, blocked). The Michael Morton Act applies to offenses committed on or after January 1, 2014 (*Garza v. State*, secondary), leaving older files to office discretion, Public Information Act requests (where, after the post-*Holmes* amendment, a conviction's closed file is not covered by §552.108(a)(2) — secondary), or habeas-court discovery orders after issues are designated (UT CLE discovery paper, blocked; Falkenberg pp. 10, 25). Crime-lab records will have a new channel: the DPS "Texas Crime Lab Records (CLR) Connect portal," created after OCFW's forensic litigation, "is expected to go live during August 2026" (FY25 Judicial Support report p. 70). The client channel runs through TDCJ: attorney-of-record calls "shall be confidential," do not count against monthly minute caps, are "subject to monitoring and recording, except calls to the offender's attorney(s) of record providing legal services," and are requested and approved under BP-03.81 rather than placed at will; the directive read is dated 2009 and may be superseded, and BP-03.81 itself, the I-162/I-163 forms and the 2023 legal-mail exemption from digitisation stay secondary (TDCJ ED-03.32, hosted by TCDLA; TDCJ attorney forms, blocked). The doctrines the engine screens for are stated in primary practice materials: *Elizondo*'s "clear and convincing evidence that no reasonable juror would have convicted him in light of the new evidence"; Art. 11.073's "contradicts scientific evidence relied on by the state at trial" with relief on a preponderance that the applicant "would not have been convicted," the *Robbins* holding that an expert's changed opinion is new scientific knowledge (codified in 11.073(d)), and its inapplicability to punishment evidence (*Ex parte White*); the out-of-time PDR line (*Wilson*, *Crow*, *Florentino*, *Owens*, *Riley*) and out-of-time appeal line (*Axel*, *Garza v. Idaho*, *Castillo*); and the form of relief in *Ex parte Thompson*, where "[a]ll deadlines shall be calculated as if

Applicant was sentenced on the date of this Court's mandate" (Falkenberg pp. 23–29; Udashen slides; *Ex parte Thompson*). A secondary Texas Defender Service figure — 15 of 74 Art. 11.073 applications (20%) won relief between 2013 and 2023 — is the only 11.073 outcome rate found (DPIC summary, blocked).

The jobs to be done. The professional-tier document's five jobs — triage before quoting a fee, the record review for a retained matter, fitting the form, the affidavit bottleneck, and the clock — survive and gain sharper evidence (professional_tier_expansion.md §4.2). Three refinements follow from the primary tables. The triage job is bigger than the firm: IPTX's screening backlog grew to 605 while its litigation docket stayed at 10–12, so a structured, grounded pre-review is as valuable at an innocence organisation's intake as at a solo's fee quote. The form-fit job is measurable: 270 non-compliance dismissals in FY2025 is 11.5% of the docket, and the dismissal rule is mechanical. And the appeal-restoration job is larger than the earlier edition knew: with 48 out-of-time appeals and PDRs granted in FY2025 against 57 merits grants, the question "did appellate counsel send the TRAP 48.4 letter and did trial counsel perfect the requested appeal" is the single most winnable 11.07 inquiry, which is why the consumer PRD already built FR-11 around it and why this plan moves the post-affirmance checklist into Phase 1 (mvp_v1_prd.md FR-11; CCA FY2025).

Today's tools summarize depositions, not reporter's records — and no vendor page could be read

The tools landscape is the one part of this report that did not improve with the primary pass: every vendor host (TypeLaw, Clearbrief, BriefCatch, Briefpoint, LawToolBox, Docket Alarm, CalendarRules, Clio, Smokeball, MyCase, PracticePanther, Everlaw, DISCO, Thomson Reuters, LexisNexis, vLex, JusticeText, CrimD/Matey, Rev, Reduct, LIT Software) and every federal-court host returned no connection on 2026-10-18, and the comparison sites (G2, Capterra, LawNext) were blocked too. The earlier edition's price and feature table is retained below with every figure marked secondary, including TypeLaw's, which the earlier edition called official and which turns out to rest on a search summary with a conflicting G2 figure. What did come back primary is the demand-side frame the State Bar supplies, and it is the better half of the argument anyway.

Category and product	What it does with a transcript or record (secondary)	Price (all secondary; vendor page not read)	Where it falls short for this record
Westlaw / CoCounsel (Thomson Reuters)	"Review Documents" answers questions across deposition transcripts and discovery; a TR community post describes uploading a brief and having CoCounsel identify a nonexistent case (TR help, not re-read; TR community, blocked)	Third-party blogs give $225–$700/seat/month bundles; no official figure surfaced (CostBench, not re-read)	Deposition-shaped; no preservation posture; no RR/CR cite form; the most-used legal AI among Texas lawyers (30% of AI users) and the benchmark respondents name (SBOT 2026 AI Survey)
Lexis+ with Protégé, CaseMap+/TextMap	Brief Analysis summarises uploads; transcript summarisation lives in CaseMap+; one blog says "Lexis+ AI" was replaced by "Lexis+ with Protégé" in February 2026 (Vaquill blog, not read; promotional)	$128–$494/user/month reported; AI seats $300–$500 reported	Deposition issue-coding by hand; no issue generation from a criminal record; no Texas deadlines

Category and product	What it does with a transcript or record (secondary)	Price (all secondary; vendor page not read)	Where it falls short for this record
vLex Fastcase / Vincent	Primary law is free to all Texas attorneys through the State Bar; Vincent is a paid upgrade whose SBOT webinars cover "tools and content available with paid upgrades" (texasbar.com; SBOT vendor page: vLex Fastcase)	Vincent price not published on the SBOT page; secondary $69–$399/user/month	The free floor is research, not record review
Clearbrief	Blog describes "Semantic Scoring" of how closely a sentence maps to the cited page and a December 2025 "Cite Check Report"; appears on the SBOT survey's tool checklist (LawNext, blocked; SBOT 2026 AI Survey)	$150/user/month or $300/brief per a LawNext directory listing (not read)	Verifies cites in a draft; does not digest the record or spot issues — the closest product to one of the five jobs
TypeLaw, Briefpoint, BriefCatch	Brief formatting with record-citation hyperlinking add-on; discovery drafting; Word style checker	TypeLaw $895/brief base, +$400 record hyperlinking, $400/month self-serve for panel attorneys (search summary; G2 shows $1,895); BriefCatch $60–$75/seat/month; Briefpoint none surfaced	Downstream of issue-spotting; set the per-brief price precedent
TranscriptPad / LIT SUITE	iPad transcript review and issue coding	$600/year per a help-centre page (not read)	Deposition page/line format
Everlaw, DISCO, Relativity	E-discovery review priced per GB; Everlaw for Good's eligibility is described as a federal CJA-panel path, a 125%-of-poverty low-income category, and nonprofit mission categories (Everlaw support page, blocked)	DISCO small deployments $20,000–$40,000/yr reported	Per-GB pricing is an awkward fit; the free program's county-PDO exclusion remains unverified on the vendor's own page
JusticeText, Rev, Reduct, Matey/CrimD	Transcription and analysis of bodycam, jail calls and recorded hearings; Rev is an SBOT benefit vendor with a bar-association pricing page (SBOT vendor page: Rev)	Rev bar pricing not shown on the SBOT page; Reduct $12–$75/editor/month reported	Trial-stage evidence tools; the most plausible entrants into transcripts
Clio, MyCase, PracticePanther, Smokeball	Practice management; all four are SBOT benefit vendors, and Smokeball Bill is free to members (SBOT Member Benefits; SBOT: Smokeball Bill)	Aggregators disagree on Clio ($39–$149/user/month)	No analysis; a Chambers product must coexist with these and with LegalServer

Category and product	What it does with a transcript or record (secondary)	Price (all secondary; vendor page not read)	Where it falls short for this record
LawToolBox, Docket Alarm, CalendarRules	Court-rule deadline calendaring	$16–$99/month reported	Whether any lists TRAP or CCA rules is unknown; OCA's local-rules portal has been the mandatory host for local rules and standing orders since January 1, 2023, which is the authoritative upstream feed a Texas product would ingest (txcourts.gov Rules & Standards)
TAMES, re:SearchTX, eFileTexas	Record delivery, docket documents, e-filing	—	No API; the product must accept PDF uploads

Three conclusions survive the loss of the vendor pages. The differentiator is still the appellate and habeas record structure — multi-volume reporter's records, the clerk's-record distinction, objection-to-ruling tracing, Texas citation form — which no source, primary or secondary, attributes to any tool. The buyer's gating concern is now documented in the State Bar's own words: respondents "would use AI much more broadly if citation accuracy were solved" and "specifically named Westlaw and Lexis as the standard against which other AI research tools should be measured" (SBOT 2026 AI Survey). And the channel is already structured: the State Bar runs a benefit-vendor program whose roster includes Clio, MyCase, PracticePanther, Smokeball and Rev and whose "New Vendor Inquiry" form is linked from the benefits page (SBOT Member Benefits).

The pain-point catalogue, with the engine feature that answers each

Pain	Evidence	Who feels it	Product response (phase)
Record review is the hours the fee does not cover	Delphi record review 3 / 9 / 17 / 40 hours by bucket; total 34.8–100.2 hours; Dallas's $1,800–$3,500 range and Collin's $3,500 flat work out to ~$51/hour on a 500–1,500-page record (estimate) (Addendum; Dallas schedule)	Both; acute for appointed appellate counsel in flat/capped counties	Full-record screen with priority list and page-anchored excerpts, so reading becomes verification (Phase 1); record inventory bucketed per the Addendum so the packet speaks the regulator's language
Error is buried in un-objected moments and the preservation call is outcome-determinative	TRAP 38.1(i) record-cite duty; TRAP 44.2's two harm standards (TRAP)	Persona 1	`preserved_error` screen with objection → ruling → page → preserved yes/partial/no → harm standard, in prompt set v2 (analysis.service.ts) (Phase 0 validation, Phase 1 delivery)
The *Anders* decision consumes a full read either way and must be documented	Guideline 9.5(G)'s "fully review the appellate record for all reviewable errors"; Dallas pays $400–$1,000 for an *Anders* brief; Travis will not count one toward panel qualification; OCA publishes no *Anders* counts (Performance Guidelines; Dallas schedule; Travis plan)	Appointed Persona 1	*Anders* diligence appendix: screens run, pages read per volume, OCR confidence, exclusions; *Kelly* packet checklist (Phase 1–2)
Every factual sentence needs a cite and the word count excludes listed parts	TRAP 9.4(i)(1)'s exclusion list; 9.4(i)(3) certificate relies on the word processor (TRAP 9.4)	Persona 1; Persona 2 for the memorandum	Statement-of-facts cite table export; countable-words helper and certificate text (Phase 2)

Pain	Evidence	Who feels it	Product response (phase)
Deadlines are many and some are jurisdictional	NOA 30/90 + 15-day extension; record 60/120; rehearing 15; PDR 30 + 15; 11.07 180-day resolution and 181st-day transmittal (TRAP 26.2, 26.3, 35.2, 49.1, 68.2, 73.4, 73.5)	Both	TRAP clock chained from sentencing and record-filed dates, jurisdictional vs discretionary labels, ICS export (Phase 1 posture, Phase 2 calendar)
Missed post-affirmance letters generate weekly out-of-time PDR grants	TRAP 48.4 five-day certified-mail duty; "valid out-of-time PDR claims based on counsel errors on a weekly basis"; 27 out-of-time PDRs and 21 out-of-time appeals granted FY2025 (Falkenberg p. 25; CCA FY2025)	Persona 1 (duty); Persona 2 (claim)	TRAP 48.4 / Guideline 9.6 post-affirmance checklist and letter template (Phase 1); the FR-11 appeal-restoration screen in the attorney packet (mvp_v1_prd.md FR-11)
The writ screening phase costs before anyone knows if a claim exists, and §4 makes it the only shot	§4 dismissals 411 (17.6%) in FY2025; TRAP 79.2(d) no rehearing; retained investigation phase "at least $10,000" (secondary) (CCA FY2025; Falkenberg)	Persona 2	Counsel Review at $199 as the viability read; complete-inventory framing (FR-8) and subsequent-writ tagging (FR-9) carried into the attorney packet (Phase 1)
The application fails on the form	270 non-compliance dismissals (11.5%) FY2025; two pages per ground; "any ground not raised on the form will not be considered" (CCA FY2025; 11.07 form)	Persona 2	Grounds grouping in Part B mapped to the form's items (Phase 1); form-fit export with two-page budget, memorandum word budget and TRAP 73.1 checklist (Phase 2)
Trial counsel's affidavit decides IAC and drives remands	183 remands for hearing or affidavits FY2025; CCA "typically orders appointment of counsel" on remand for a live hearing (CCA FY2025; Falkenberg p. 9)	Persona 2	Affidavit-topics list from IAC findings' `develop` steps (Phase 1); records tracker on `dependsOn` (Phase 3)
Premature or abusive state filings do not toll; filing before the mandate is wasted	70 "direct appeal pending" dismissals FY2025; *Ex parte Johnson*; *Larry v. Dretke* (secondary) (CCA FY2025; Falkenberg p. 4)	Persona 2	Existing deadline engine's finality, tolling-direction and laches rules (mvp_v1_prd.md FR-5); §2254 exhaustion map (Phase 3)
Trial counsel's file arrives without the State's discovery; older prosecutor files are discretionary	Opinion 657 (secondary); Morton Act offense-date limit (secondary); CLR Connect portal August 2026 (FY25 Judicial Support report)	Persona 2	Records tracker with requested/received/not-available states and a `dependsOn` vocabulary that names the source (trial counsel, prosecutor, PIA, lab portal) (Phase 3)
Intake triage at innocence organisations is the bottleneck	605 requests awaiting screening at IPTX, 1,255 received in 2025, 12 in litigation (IPTX Jun–Dec 2025)	Clinics (Chambers)	Consented referral packets from the consumer tier (US-5) and Chambers seats for clinic screeners (Phase 3)
Clients are hard to reach; calls are pre-approved and short	Attorney calls confidential and uncapped by minutes but approved under BP-03.81; 15-minute OTS cutoff (TDCJ ED-03.32)	Persona 2	The consumer packet (Part B plus uploaded documents) handed to counsel starts the consultation from facts

Pain	Evidence	Who feels it	Product response (phase)
Fear of hallucination, confidentiality and sanctions; verification is the purchase criterion	Criminal law 47% AI adoption; "would use AI much more broadly if citation accuracy were solved"; Opinion 705's four duties; proposed TRAP 9.1(d) (SBOT 2026 AI Survey; Texas Bar Blog on Opinion 705; Misc. Docket 26-9054)	Both	Grounding as a hard filter (FR-6/FR-7); "verified against record" mark per finding; the Record Desk verification view and a 9.1(d)-shaped verification log (Phase 2)
Software is overhead, not a reimbursable expense	Art. 26.05(c)–(d); Bexar's "computer research" exclusion; El Paso's equipment exclusion; Harris MAC rates "inclusive of … overhead" (Fair Defense Laws 2025; Bexar order)	Appointed Persona 1 and 2	Price per record below two appointed hours; never pitch voucherability; the office (Chambers) is the buyer where the individual cannot absorb it
Non-PDF exhibits and A/V are out of band	Portal excludes audio/video (secondary)	Both; habeas investigators most	Explicit "not reviewed" inventory (Phase 1); A/V add-on (Phase 3)

Two corrections to the earlier edition's catalogue. The claim that the Fair Defense Act's "reasonably necessary" expense language was "the doctrinal hook for vouchering a per-matter software fee" is withdrawn: Art. 26.05(d) as compiled names investigation, mental-health and expert expenses, Art. 26.05(c) folds overhead into the rate, and the only two plans that mention research tooling exclude it (Fair Defense Laws 2025). And the earlier edition's AI-adoption figures from Clio and Smokeball surveys are replaced by the State Bar's: adoption is broad (62%) but shallowest in criminal law (47%), and the tools in use are general-purpose (SBOT 2026 AI Survey).

Market: a few hundred lawyers, ~5,700 matters, and a channel priced under $10,000

Size. The specialist segment is **134 board-certified criminal appellate lawyers** inside a bar of 118,430 active attorneys (101,162 in-state), 21% of whom are solo practitioners and 15% in firms of two to five; the realistic reach is the Criminal Justice Section (2,963), the Appellate Section (2,046) and TCDLA (3,750–3,800 members), with heavy overlap — low thousands of lawyers, not tens of thousands (SBOT Attorney Statistical Profile 2025-26; TCDLA Marketing Kit). The appointed appellate segment is narrower still: 55 attorneys took ten or more appointed appeals in FY2015 (Addendum p. 3). The matter pool is **about 3,600 new criminal appeals, 850–900 PDRs and 2,100 11.07 applications a year**, so roughly 5,700 primary-vehicle matters plus supplemental writs and 11.072 proceedings that no court reports; the earlier edition's 4,000–6,000 estimate for direct appeals is replaced by OCA's count (COA Activity Detail 2025; CCA FY2025). OCA reports criminal filings up 17% over five years and 9,165 opinions issued by the courts of appeals in FY2024 (OCA FY2024 report pp. 75–77). NACDL's and NAPD's national figures, HCCLA's 700-plus, and the Harris County share of appointments all stay secondary (hosts blocked). The professional-tier document's payroll arithmetic — forty Counsel Reviews a month is under 1% of annual 11.07 intake, eighty Advocate seats under 2% of TCDLA — remains believable on these numbers; forty a month is also about 13% of monthly new criminal appeals, which is the less comfortable way to say it (professional_tier_expansion.md §7.4).

Buying behaviour and willingness to pay. Solos buy through bar benefits, free trials and CLE; the State Bar's benefit program already lists Clio, MyCase, PracticePanther, Smokeball and Rev and gives every member Smokeball Bill and vLex Fastcase free, so the zero-price baseline a new product competes against is real and the SBOT vendor inquiry is the cheapest credibility channel (SBOT Member Benefits). An hour of record review is worth $100–$155 to appointed counsel and $368 at the private median, with Austin ($398), DFW ($388) and Houston ($377) above it and San Antonio ($332) and El Paso ($313) below (SBOT 2025 rate report). The reimbursability pitch is withdrawn (above); what replaces it is the arithmetic of caps. At Collin's $3,500 flat or Dallas's $3,500 top of range, a lawyer who spends the Delphi 46.4–69.1 hours on a 100–1,500-page record is already at the cap, so every hour the product removes raises the effective rate whether or not anything is reimbursed; at Harris's uncapped $125, the product's value is the Addendum's caseload cap — more appeals within 1,389 hours — and the office, not the individual, captures it. Opinion 705's billing rule applies to both:

"attorneys cannot bill clients for hours not genuinely worked, even if tasks have become streamlined through AI," while "reasonable costs associated with the direct use of generative AI services … may be passed onto clients with appropriate prior agreement" (Texas Bar Blog on Opinion 705). Public defender offices buy through county purchasing; the professional-tier document's $100,000 competitive-bid threshold and TIDC Improvement Grant line stand as secondary (professional_tier_expansion.md §3.4). Price anchors for the professional tier — $60–$150 a month for subscriptions, $300–$1,300 per brief for Clearbrief and TypeLaw — are all secondary, and the $199 Counsel Review, $99 Advocate seat and $249 Chambers seat sit inside them.

Channels, now with primary prices. TCDLA is the hub: "more than 3,800 lawyers and legal professionals," "more than 60 CLE seminars each year," Voice for the Defense reaching "more than 6,000 criminal defense professionals and judges" ten times a year; Rusty Duncan 2026 anticipates **850–1,000 attendees**, all booths sold out by March the prior year, **exhibit space $1,500**, bag insert $500, two-minute commercial slot $1,500, program full page $1,250; ordinary seminar exhibit space is $500 ($1,000 at Rusty or Mastering Scientific Evidence), flyer in packets $300, lunch sponsorship $1,000; a Voice full page is $450 once or $3,150 for ten issues; dues are $100 for the first two years then $180, with an $80 affiliate category for "exhibitors, advertisers" and a member-endorsement requirement for new applicants (TCDLA Advertise/Exhibit; Rusty 2026 Exhibitor Packet; Exhibitor Kit 2025; Voice Advertising Kit 2025; TCDLA Join). The State Bar's Appellate and Criminal Justice Sections charge $30 dues and run their own sites (tex-app.org, txbarcjs.org — both blocked); the Texas Bar Journal claims 136,000 readers a month and the site 1.2 million unique visitors a year, with display rates in a gated media kit (SBOT Sections; SBOT Advertise with Us). A full Texas channel year — a Rusty booth ($1,500), a ten-issue Voice run ($3,150), two seminar exhibits ($1,500), the affiliate membership ($80) and section dues — is under $7,000 before travel, below the professional-tier document's $10,250 channel line, which assumed $4,000 and $2,500 exhibitor fees (professional_tier_expansion.md §7.2). The channel conflict the professional-tier document names — the consumer product sells for $299 what some writ practitioners sell for $3,000 — is unchanged; the honest answer ("the $3,000 was attorney hours") is also Opinion 705's answer, and leading with Persona 1 at the Appellate seminar avoids the conflict entirely (professional_tier_expansion.md §5.4).

What the engine already does for these personas

The development plan must start from the product as it exists, and the repository documents — the one body of evidence that was primary in both editions — place it further along than the September 15 professional-tier document assumed. Prompt set v2, dated 2026-09-27 and selected by `ANALYSIS_PROMPT_SET`, runs **seven screens on a trial record** — `preserved_error`, `iac`, `brady`, `junk_science`, `sentencing`, `voir_dire` and `identification` — and two on a plea record (analysis.service.ts). The preserved-error prompt is written the way Guideline 9.5(G) and TRAP 44.2 require a direct-appeal lawyer to read: it tracks every objection to its ruling under TRAP 33.1, checks hearsay predicates (Article 38.072's age limit, excited-utterance timing, medical-diagnosis purpose), covers improper argument with the objection/instruction/mistrial sequence, vouching and bolstering, 403/404(b), the charge under *Almanza*, expert qualification and directed-verdict rulings, and asks for preservation (yes/partial/no) and the governing harm standard per finding. The identification screen covers array construction, administrator knowledge, facial-recognition seeding and the *Biggers* factors — the gap the Gary manual-versus-engine comparison identified (manual_vs_engine_gary_2026-09-27.md §7).

Every finding carries structured fields: `preserved`, `harmStandard`, a `vehicle` (direct appeal, writ, or either) derived deterministically from screen, category and preservation, a `develop` step — "the extra-record step that proves or rules it out" — and `dependsOn`, the records the finding needs that were not provided (analysis-fields.ts). `priorityRank` sorts by severity, then preservation, then harm standard, then confidence — "the order an appellate lawyer sorts a brief" — and a void-sentence claim on the "either" path is not penalised for lacking a preservation call. `investigationChecklist` folds the `develop` steps into a de-duplicated to-do list, and the Part B renderer already prints "For counsel — issues by priority" and "Investigation checklist" (reports/index.ts). On the Gary reference case — a 602-page scanned reporter's record, which puts it in the Addendum's 500–1,500-page bucket where the Delphi panel allots 17 hours of record review — the engine found all five attorney-signed canaries where a founder-supplied manual review found one, and its dispositive findings (a $10,000 fine assessed where §12.42(c)(2) authorises none, a preserved multiple-punishments double-jeopardy claim, the

consecutive life sentences, the pen-packet identity linkage) lived in the punishment phase the manual review never reached; the comparison also lists the engine's gaps and warns that the eval gate has not been re-run on the production model (manual_vs_engine_gary_2026-09-27.md; business_case_12mo.md §5).

The operating layer is equally relevant. QA is automated with a 24-hour human-triage hold for failures and a one-variable kill switch; measured all-in tech cost per case is **$4.66 for the 602-page scanned record and $9.42 for a born-digital transcript-heavy one**, with the batch API halving model cost; the solo-founder cash break-even is about four cases a month (business_case_12mo.md §0, §5, §8c). The status page publishes durable `CaseEvent` facts and liveness pulses so a user sees "Check 4 of 7: sentencing problems, pass 1 of 2 · Now writing up what it found (6 min so far)," never shows finding counts before QA, and carries no legal content on the customer channel (status_page_live_feedback.md). The PRD's grounding rules — every finding resolves to a verifiable citation or is dropped, the renderer refuses a finding whose citation fails re-verification, Part B is framed as an inventory for counsel to complete because §4 makes the first writ the only writ — are the properties proposed TRAP 9.1(d) and Opinion 705 now ask a signer to vouch for (mvp_v1_prd.md FR-6 to FR-9). The professional-tier document's roughly nine engineering-week estimate included 1.5 weeks for the preserved-error screen; that work is done, which leaves the eval re-run as the gating cost and shifts the remaining budget toward surfaces and exports (professional_tier_expansion.md §6.1).

Development plan: three phases from Counsel Review to Chambers

The plan keeps the professional-tier document's shape and sequencing — per-record product first, seats second, offices third, no v3 workspace — and fills in the workflows, screens, inputs and outputs the primary sources support. Four design principles run through every phase. The artifact is the pitch: lawyers buy on a real Part B page with a volume-page-line cite and verbatim excerpt. Verifiability is the product: every finding shows the page it came from, and the product never emits a case citation it has not been given — it cites statutes and doctrine categories, and the research pitch stays forbidden. The lawyer is the reviewer: the template says "issues identified for counsel's evaluation," never an outcome probability, and the *Anders* appendix documents what was read rather than certifying there is nothing to find. And deadlines are labelled by consequence — jurisdictional (notice of appeal, PDR window, the 181st-day transmittal) versus discretionary (the brief, extensions "usually granted") — chained from the dates the matter form captures (CCA Internal Operating Procedures). Two principles are added by this pass. The product adopts the Addendum's record buckets (<100, 100–500, 500–1,500, >1,500 pages) as its size taxonomy in pricing, eval and reporting, because that is how Texas regulators and defender offices already measure the work. And the product produces no brief text: Bexar's rule that anyone who "assisted the attorney of record" must be named on the voucher and Harris's "I wrote this brief and I am solely responsible for its contents" certification are the disclosure lines a drafting feature would cross, and an inventory with excerpts does not (Bexar order, Guideline 13; Harris 2007 voucher).

Phase 0 — prove the seven screens on a lawyer's record (now to professional launch)

No new surfaces. Re-run the NFR-1 eval gate on prompt set v2 and the production model on both reference ledgers, as the Gary comparison requires; add the two unadjudicated ledger candidates it proposes (photo-array procedure, relationship bolstering) and resolve the Carmona and Stutts identities against the record (manual_vs_engine_gary_2026-09-27.md §7). Commission a **direct-appeal reference ledger**: a board-certified criminal appellate lawyer labels a second trial record for preserved objections, rulings, preservation posture and harm standard, chosen in the 100–500-page bucket where 41% of appointed appeals fall, with a third record over 1,500 pages scheduled for Phase 2 because that is where the Delphi panel put 40 hours of review (Addendum Table 5-2, Fig. 4-2b). Run the practitioner interviews listed in the gaps section; at least two must be appointed appellate counsel in flat-range counties (Dallas, Collin) and two writ practitioners. Have counsel review the attorney template variant, the work-product language, the verification-log wording against proposed TRAP 9.1(d), and the directory design under Occupations Code chapter 952 — the PRD's R-6 (mvp_v1_prd.md §8; Misc. Docket 26-9054). Decide the professional sub-brand. Submit the State Bar benefit-vendor inquiry, because the roster already carries the practice-management tools this product will sit beside (SBOT Member Benefits).

Phase 1 — Counsel Review on existing rails (first quarter of professional launch; the document's month 4)

The workflow. A lawyer lands on `/for-counsel`, signs up with email, password, bar number and practice type (private, PDO, clinic), which creates an ATTORNEY in a new tenant with the bar number queued for manual verification. The consumer eligibility wizard is replaced by a **matter form**: vehicle (direct appeal, PDR-clock-only, 11.07, 11.072, 11.09, §2254 follow-on), lane (trial or plea), county and court, offense and sentence, sentencing date, motion-for-new-trial date if any, record-filed dates, court-of-appeals judgment and mandate dates if any, prior writ history, and a free-text "evidence outside the record" note; capital cases are refused at this form exactly as the PRD refuses them at US-0. Upload reuses the presigned-S3, resumable, malware-scanned path, with one addition: **TAMES-volume recognition** that reads the cover pages to label each PDF as clerk's record, reporter's record volume N of M, exhibit volume or supplemental record, echoes the inventory back ("RR vols. 1–7 of 7, CR, exhibit vol. 6 — no audio/video exhibits received"), records what was not received, and reports the record's Addendum bucket. The progress page is the existing status page with the professional voice; the no-finding-counts-before-QA rule stays. The pipeline runs the lane's screens weighted by vehicle — direct appeal weights preserved error, voir dire and identification; 11.07 weights IAC, Brady, 11.073 and sentencing — and sampled rather than full QA applies to prose while citation re-verification stays 100% and blocking. Purchase is the existing Stripe Checkout one-time flow at **$199** with the 5,000-page cap and the $49 overage; the cap is generous against a docket in which 99% of appointed appeals had records under 1,500 pages (Addendum Table 5-2). A promo code covers pilot offices.

The output. A Part B-first PDF, with Part A available as an optional, off-by-default client letter. Part B gains six sections on top of the findings, the priority list and the investigation checklist that already render. A *record inventory* (volumes, pages, OCR confidence per volume, exclusions, Addendum bucket, and the Delphi record-review hours the bucket implies, cited to the Addendum as context rather than as a promise). A *deadline posture* block that adds the **TRAP clock** from the rule text — notice of appeal 30/90 days from sentencing with the 15-day extension window (26.2, 26.3), record 60/120 (35.2), brief 30 days after the later record (38.6), rehearing 15 days after judgment (49.1), PDR 30 days plus 15 (68.2), and for 11.07 matters the 180-day resolution and 181st-day transmittal (73.4(b)(5), 73.5) — alongside the existing 11.07/AEDPA/laches posture, each date labelled jurisdictional or discretionary and stamped "as of" (TRAP). An ***Anders* diligence appendix** listing every screen run, every volume and page range read, and every item not reviewed, phrased as a record of process mapped to Guideline 9.5(F)–(G), never a conclusion (Performance Guidelines). A **post-affirmance checklist** keyed to TRAP 48.4 and Guideline 9.6 — opinion and pro se PDR notice sent within five days by certified mail, return receipt, certification filed — because the CCA grants out-of-time PDRs for its absence "on a weekly basis" (Falkenberg p. 25). For 11.07 matters, **findings grouped by candidate ground** with the vehicle label and §4-exception tag the consumer's subsequent-writ mode already computes, each ground's facts summarised to the two-page budget, and the form's items 1 (including "out-of-time appeal or PDR"), 13–15 (appeal, PDR, prior writs and why grounds were not raised before) and 17 (time-credit exhaustion) pre-populated from the matter form, plus an **affidavit-topics list** — the IAC findings' `develop` steps rewritten as the specific questions trial counsel will be ordered to answer (11.07 form). And a per-finding **"verified against record"** mark backed by the existing hash-anchored re-verification. The UPL template variant — "issues identified for counsel's evaluation" — applies throughout, and the packet footer states it was prepared at counsel's direction for counsel's use.

Inputs and outputs by vehicle.

Vehicle	Inputs the matter form and upload collect	Outputs specific to the vehicle
Direct appeal	CR, RR volumes, exhibit volumes; judgment and sentence; charge; notice of appeal; sentencing, MNT and record-filed dates	Preserved-error ledger (objection → ruling → page → preserved → harm standard under 44.2(a)/(b)); issues by priority with vehicle labels; *Anders* diligence appendix; TRAP clock; *Kelly* checklist; TRAP 48.4 post-affirmance checklist
PDR (clock only)	Court-of-appeals judgment date, rehearing motion dates	PDR and extension deadlines (68.2); 4,500-word limit note (9.4(i)(2)(E)); 48.4 letter reminder; no merits analysis

Vehicle	Inputs the matter form and upload collect	Outputs specific to the vehicle
11.07	Record; judgment; appellate opinion and mandate dates; prior writ history; trial-counsel file if held; new-evidence note	Findings by ground with §4 tags and form-item mapping; affidavit topics; investigation checklist with `dependsOn` records; 11.07/AEDPA/laches posture; "not final until mandate" warning; complete-inventory framing
11.072 / 11.09	Record or plea papers; community-supervision or misdemeanor status	Same screens; trial-court clock (secondary rule text, flagged); note that the ruling is appealable to the court of appeals
Plea convictions (any vehicle)	Plea papers, admonishments, judgment	Plea-lane screens as in the consumer product

Build and gate. Roughly four engineering-weeks per the professional-tier document's rows for tenancy surfaces, sign-up, matter form, billing reuse, template variant, ops and analytics, plus the volume-recognition, TRAP-clock and 48.4-checklist increments. The gate to Phase 2 is the document's own: ten paid Counsel Reviews, at least two from the consumer referral loop, and attorney feedback on what the engine missed captured per finding (professional_tier_expansion.md §5.3).

Phase 2 — the Record Desk: verify, cite, export (months 4–8)

The workflow. The lawyer opens a delivered matter in the browser and works a **verification view**: the findings list on the left in priority order, filterable by screen, vehicle and preservation; on the right the record page the selected finding cites, with the verbatim excerpt highlighted; one click accepts, rejects or annotates. This is the internal QA side-by-side workspace the PRD already describes, exposed read-only to the ATTORNEY role and scoped to findings and pages — not the Neo4j graph, not chat, not drafting (mvp_v1_prd.md US-8; professional_tier_expansion.md §6.4). Every accept/reject is an attorney-labelled data point that flows into the eval ledgers — the second evidence stream the business case wanted for Gate 3.

The exports. A **statement-of-facts cite table** (DOCX and CSV): chronological record events with Texas-form citations, witness, exhibit and excerpt, built from the entity index and timeline Part B already carries, so the brief's factual sentences start with their cites attached and TRAP 38.1(i) is satisfied by construction. A **preserved-error table** for the argument section: objection, ground, ruling, page, preservation, harm standard. An **11.07 form-fit export**: accepted findings mapped to numbered grounds, each ground's supporting-facts statement checked against the two-page budget, the memorandum against the 15,000-word budget, and a TRAP 73.1 checklist (every ground on the form, each on a new page, 14-point type, certificate of compliance, verification page, State Bar number); the form itself is the CCA's 2018 form, and the product fills a structure, not an argument (TRAP 73.1). A **TRAP 9.4(i) word-budget helper** that computes countable words for a pasted draft using the rule's own exclusion list and emits certificate-of-compliance text — trivial, sticky, and offered by no vendor the research found. A **verification log** that records, per export, which record citations were viewed and accepted by the signer, drafted to the proposed 9.1(d) representation that "legal citations, quotations, holdings, and record citations are not fabricated," and labelled as supporting the lawyer's own review rather than replacing it (Misc. Docket 26-9054). A **deadline calendar** per matter with ICS export and the jurisdictional/discretionary labels. **Checklist artifacts**: the *Anders* packet (motion to withdraw, client notice, form motion for pro se record access per *Kelly*) and the TRAP 48.4 letter, as templates a licensed user completes. And an **activity log export** of the lawyer's own verification sessions in six-minute increments, Harris's billing unit, for the itemisation form Art. 26.05(c) requires — the product never bills or suggests billing AI-saved time, which Opinion 705 forbids (Harris District fee schedule; Fair Defense Laws 2025; Texas Bar Blog on Opinion 705).

Billing. The **Advocate** seat at $99 a month with one Counsel Review included, via Stripe Checkout in subscription mode and the customer portal, plus the matter list with deadline posture on every matter. The $99 re-run with a supplemental record already exists and diffs against prior findings.

Build. Roughly four engineering-weeks: the viewer exposure and feedback capture (1.5), the exports (1.5), the calendar, helper and log (0.5), seats (0.5 beyond the document's billing estimate). The gate to Phase 3 is per-case buyers converting

to seats and at least one pilot office running five or more records.

Phase 3 — Chambers for offices, and the writ investigation layer (months 9–12 and beyond)

Office tenancy. The **Chambers** seat at $249 a month per attorney with free investigator and viewer seats, office admin, shared matters and a pilot-office flag — the existing multi-role RBAC. Three public defender pilots start free in Phase 1 on the county budget calendar with the conversion ask framed as a TIDC Improvement Grant "process improvement" line, and the pilot's **outcome metric is taken from the Addendum**: hours from record-filed to brief-filed, split into record review and brief writing, by record bucket, against the current-practice baseline (17.2 / 31.4 / 49.5 / 97.3 total; 3 / 9 / 17 / 40 Delphi review hours) — the one measurement a chief defender, a TIDC reviewer and a commissioners court all already recognise (Addendum Figs. 3-1, 4-2b). The Harris and Dallas appellate PDOs, which supplied the Addendum's data, are the natural first two; Bexar's two-lawyer division is the third (professional_tier_expansion.md §3.1). Coexist with LegalServer by export, not integration. Ship the county security packet: SOC 2 timeline, CJIS-aligned controls, US data residency, zero-retention provider attestations, a DPA, and a TRAIGA statement, with the caveat that TRAIGA's enrolled text and its reach to legal-services vendors remain unverified (secondary) (Perkins Coie on TRAIGA, blocked).

The investigation layer for writ practitioners and clinics. A **records tracker** on the investigation checklist: each `dependsOn` item carries requested/received/not-available states, a date, and a source vocabulary drawn from the primary findings — trial counsel's file (minus 39.14 discovery), the prosecutor's file (Morton Act for post-2014 offenses, PIA or discretionary request otherwise), habeas-court orders under §3(d), the DPS CLR Connect lab portal from August 2026, TDCJ time-credit records — so the lawyer sees which findings are blocked on which records and the re-run picks up what arrives (FY25 Judicial Support report; Falkenberg). The **A/V add-on** the roadmap already prices for v1.1 — jail calls, bodycam, recorded hearings — transcribed and tied to the same cite-and-verify loop. A **§2254 exhaustion map**: for each ground, where it was raised (direct appeal, PDR, 11.07) and the federal clock position, with the tolling-direction rule the PRD already states and the "not properly filed before the mandate" warning. **Clinic intake mode**: consumer referral packets (US-5, consent-based) arriving in a clinic's Chambers tenant as pre-triaged matters, matched to the clinics' own gate ("post-conviction, felony, completed direct appeals, actual innocence") so that the 605-case screening backlog gets structured input rather than more mail (IPTX Jun–Dec 2025; business_case_12mo.md §8).

What is deliberately excluded. Case-law research and citator claims; drafting of argument or any brief text; PDR merits analysis; capital 11.071 matters; the knowledge-graph and chat workspace. Each either competes with a free or entrenched incumbent, is argued on documents the engine does not read, crosses a county disclosure line, or expands UPL and verification exposure without serving one of the five jobs.

The screens, in one place

Screen (route)	Phase	Reuses	New
`/for-counsel` landing	1	Design tokens, promo engine	Persona hero, real Part B page, three-column JTBD, "what it is not," pricing, trust, PDO pilot form
`/for-counsel/signup`	1	Auth, ATTORNEY role, tenancy	Bar number field and manual verification queue
New matter	1	Case creation, event-sourced lifecycle	Vehicle/lane/date form replacing the consumer wizard; capital refusal
Upload and record map	1	Presigned S3, checklist, echo-back, OCR gating, page meter	TAMES volume recognition; "not received" inventory; Addendum bucket
Progress	1	Status page facts and pulses	Professional voice; same no-counts rule

Screen (route)	Phase	Reuses	New
Packet download	1	PDF renderer, priority list, checklist	Inventory, TRAP clock, *Anders* appendix, 48.4 checklist, grounds grouping with form-item mapping, affidavit topics, verified mark
Record Desk (verify)	2	Internal QA side-by-side workspace	Read-only exposure to ATTORNEY; accept/reject/annotate; feedback into ledgers
Exports	2	Entity index, timeline, structured fields	Cite table, preserved-error table, 11.07 form-fit, 9.4(i) helper, verification log, checklists, activity log
Deadlines	2	Deadline engine	TRAP chain, labels, ICS
Matters list and seats	2	`/cases`, Stripe	Subscription mode, portal, posture per matter
Office admin	3	RBAC, ops tenant column	Seat management, investigator/viewer roles, pilot flag, pilot-metric dashboard, security packet
Records tracker, A/V, exhaustion map, clinic intake	3	`dependsOn`, re-run, US-5 referral	Request states and source vocabulary, media ingestion, per-ground exhaustion, clinic tenant inbound

Risks: UPL, confidentiality, the pending TRAP 9.1(d) rule, and the one-shot writ

Unauthorized practice. Selling to licensed lawyers lowers UPL exposure relative to the consumer tier but does not remove it. The risk zones are three: the optional Part A client letter, which is family-facing and must keep the consumer disclaimers and never reach the family except through the lawyer; the checklist templates and form-fit export, which must fill structure rather than select strategy; and the referral directory, which the PRD flags as a lawyer-referral service under Occupations Code chapter 952 unless it is a neutral directory with no matching and no per-referral consideration (mvp_v1_prd.md R-6). The *Parsons Technology* history and HB 1507's software carve-out are carried from the earlier edition as secondary (Fifth Circuit, 179 F.3d 956, not re-read).

Confidentiality and billing. The State Bar's own summary of Opinion 705 (February 2025) sets four duties: competence ("attorneys cannot blindly rely on generative AI outputs but must critically assess and verify the accuracy of generated content"), confidentiality ("thorough vetting of generative AI tools for confidentiality safeguards" and staff training), verification and supervision (unverified output "could expose attorneys to potential violations of rules related to fairness, honesty, and candor to the court"), and billing (no billing for hours not worked; direct AI costs passable "with appropriate prior agreement"); the State Bar's AI Toolkit adds sample client disclosures and a tool-evaluation checklist (Texas Bar Blog on Opinion 705; SBOT AI Toolkit). Nothing in the Bar's summary makes client consent a condition; the duty is tool-vetting, which the product's zero-retention providers, no-training promise, deletion on request and RLS tenancy answer, provided the DPA and the `/for-counsel` trust section say so in the vendor's own words and the full opinion (unread; host blocked) says nothing stricter. Two conflicts are specific to this business and unchanged: the same record can exist in a family's consumer tenant and a lawyer's professional tenant, and the vendor holds records from both sides of a channel conflict; the engagement terms must address both. County buyers add CJIS and NIST expectations; those are a Phase 3 cost.

The citation-verification rule. The decisive Texas development is primary and still pending. On June 26, 2026 the Supreme Court of Texas gave preliminary approval to amendments to TRCP 13 and TRAP 9 and 52 under which "[b]y signing a filed document, the signer represents to the court that the signer has: (1) reviewed the filing and verified its accuracy, including that the legal citations, quotations, holdings, and record citations are not fabricated," with sanctions "proportionate" to the violation, lesser sanctions before striking or dismissal, a good-faith presumption, and a comment that the paragraph "is adopted principally to address concerns about the improper use of artificial intelligence in filings … Verifying a filing for accuracy is important, regardless of whether artificial intelligence was used"; comments closed September 1, 2026; the Court "expects the amendments to take effect on October 1, 2026"; as of October 18, 2026 no final-approval order appears on the Court's 2026 orders page or the Rules Advisories list, the TRAP compilation is still

dated February 6, 2026 with the old Rule 52.11, and the CCA has issued no joint order (Misc. Docket 26-9054; Administrative Orders 2026; Rules Advisories; CCA Misc. Docket Orders). Two consequences for the product. The appellate text names "record citations," which the civil TRCP 13 text omits — record-cite verification is explicitly in scope, and a page-anchored verification view is the direct answer. And because the order is a Supreme Court order whose criminal application depends on a CCA joint order that has not issued, marketing must say "proposed; finalisation pending" until a final order is read. The federal and earlier-Texas sanctions trail — *Ex parte Lee*, the Dallas and Travis County orders, the Fifth Circuit's *Fletcher* sanction for sixteen fabricated quotations, Judge Starr's 2023 certification order (current status unconfirmed), the Fifth Circuit's June 2024 decision not to adopt Rule 32.3, and E.D. Tex.'s December 2025 CV-11(g) amendment — remains secondary because every court host was blocked (Fifth Circuit, *Fletcher v. Experian*, not re-read; King & Spalding on Rule 32.3, not read). The failure mode courts punish is fabricated quotation, which is precisely what the engine's verbatim-excerpt hard filter prevents for record cites; the product's posture should be explicit that it emits record citations it can show on the page and doctrine categories, never case citations, and that the marketing never claims to eliminate verification, only to make it fast.

The 11.07 §4 one-shot problem, and its *Anders* twin. The gravest harm this product could do to a writ client is to make a lawyer believe the inventory is complete. The CCA dismissed 411 applications under §4 in FY2025 and bars rehearing under TRAP 79.2(d); the form warns that "additional grounds brought at a later date may be procedurally barred" (CCA FY2025; 11.07 form). The PRD's complete-inventory framing (FR-8) and subsequent-writ tagging (FR-9) already say that claims omitted from a first writ are ordinarily lost; the professional packet must say it more plainly, and the Record Desk must make "what was not reviewed" as prominent as what was found (mvp_v1_prd.md FR-8, FR-9). The direct-appeal twin is *Anders*: Guideline 9.5(G) places the full review on counsel, and an *Anders* brief or an ineffective-assistance-of-appellate-counsel claim that rests on a tool's summary creates exposure for the lawyer and reputational risk for the vendor (Performance Guidelines). The diligence appendix is therefore a record of process that supports the lawyer's own reading and never a certification of no error. The engine's own models disagreed on whether the Gary cumulation order was dispositive or background, which is the right illustration for a lawyer: the product ranks, the lawyer decides (manual_vs_engine_gary_2026-09-27.md §5).

Other material risks. The professional-tier document's register — two go-to-markets on a two-engineer team, channel conflict at TCDLA, PDO procurement stalls, brand blocking Chambers, the eval gate, sampled QA missing a citation error, work-product objections, an adjacent vendor adding a criminal-record screen — stands (professional_tier_expansion.md §7.5). The primary pass adds two. The economics differ by county more than the earlier edition allowed: in the hourly-uncapped counties the individual lawyer gains nothing per case from saved hours, so the Advocate seat's appeal there rests on caseload capacity and on retained work, and the office is the buyer; the `/for-counsel` copy must not promise per-case income. And the market is smaller at the top than the earlier edition's extrapolation: 3,600 criminal appeals, not 4,000–6,000, and an appointed segment of a few dozen high-volume lawyers, which makes the PDO pilots proportionally more important (COA Activity Detail 2025; Addendum p. 3). The eval risk keeps its specific face: the Brian ledger was 2/4 on the latest fresh run with run-variance remediation pending, and the production model has not been re-scored, so Phase 1 cannot ship on the Gary ledger alone (business_case_12mo.md §0).

Evidence gaps that remain open

The primary pass closed the gaps the earlier edition listed for TIDC's caseload study, the CCA's disposition tables, the 11.07 form, the TRAP amendments, the Harris and Dallas fee lines, the Performance Guidelines' appellate text, the State Bar's rate, profile and AI-survey figures, OCFW's headcount and the innocence projects' volumes. What follows is only what is still open, with the host that still has to be reached. Hosts the proxy refused on 2026-10-18 (403 on CONNECT or DNS failure): `www.txcourts.gov` and `www.tidc.texas.gov` (the non-`www` hosts worked), `topics.txcourts.gov`, `search.txcourts.gov`, `tcss.legis.texas.gov` (the statute content behind `statutes.capitol.texas.gov`, which serves only an application shell), `capitol.texas.gov`, `legis.state.tx.us`, `lrl.texas.gov`, `lbb.texas.gov`, `sos.state.tx.us`, `texasattorneygeneral.gov`, `ocfw.texas.gov`, `tdcj.texas.gov`, `tbls.org` (application shell; data API unreachable), `legalethicstexas.com`, `law.uh.edu`, `utcle.org`, `texasbarpractice.com`, `tex-app.org`,

`criminaljusticesection.org`, `innocencetexas.org`, `nacdl.org`, `publicdefenders.us`, `hccla.org`, `dcdla.com`, `acdla.org`, `sacdla.com`, every county host tried (`hcdistrictclerk.com`, `justex.net`, `hcpdo.org`, `budget.harriscountytx.gov`, `auditor.harriscountytx.gov`, `dallascounty.org`, `tarrantcountytx.gov`, `traviscountytx.gov`, `bexar.org`, `collincountytx.gov`, `wilcotx.gov`, `fortbendcountytx.gov`, `mctx.org`, `epcounty.com`), every federal-court host (`ca5.uscourts.gov`, `txnd`, `txed`, `txs`, `txwd`, `uscourts.gov`, `pacer.gov`, `supremecourt.gov`), every case-law host (`law.justia.com`, `courtlistener.com`, `casetext.com`, `scholar.google.com`, `caselaw.findlaw.com`, `law.cornell.edu`, `govinfo.gov`, `web.archive.org`, `texas.public.law`, `legiscan.com`), every vendor host named in the tools section, and `g2.com`, `capterra.com`, `lawnext.com`.

Gap	Where the answer is	Decision it informs
Current text of arts. 11.07 §3(c)–(d) and §4, 11.071 §4 timelines, 11.072, 11.073, 11.074, 39.14; Gov't Code §52.047 and §552.108; whether HB 115, HB 1291, HB 864 or HB 3757 (89R) were enacted — the only primary signal is that OCA's 89th Legislative Update has no Chapter 11 entry (89th Legislative Update)	`tcss.legis.texas.gov/resources/CR/htm/CR.11.htm`; `capitol.texas.gov/BillLookup/History.aspx?LegSess=89R&Bill=HB115`	The deadline engine's 11.07 answer/designation periods and the 11.072 clock, which this report still carries from secondary sources
Final adoption and text of TRAP 9.1(d)–(f) and 52.11, and any CCA joint order applying them to criminal cases	`txcourts.gov/rules-forms/rules-standards/rules-advisories/`; the TRCP compilation dated 10.01.2026 (link); the Texas Register of July 10, 2026 (`sos.state.tx.us`, blocked)	Verification-log wording; whether marketing may say "required"
TRAP 38.6 and 33.1 verbatim text (in the compilation read, but not transcribed)	TRAP 02.06.2026	The brief-clock rule in the deadline engine
Whether the CCA has adopted a mandatory clerk's summary-sheet form under TRAP 73.4(b)(3)	CCA clerk; district clerks	The form-fit export's cover data
Pro se versus counsel-filed share of 11.07 applications; *Anders* counts and pro se share in the courts of appeals; 11.072 and 11.09 volumes — none reported by OCA or the CCA in any FY2020–FY2025 table	Former CCA staff attorney; court-of-appeals clerks; OCA data request	Referral-funnel sizing; how prominently to lead with the *Anders* appendix

Gap	Where the answer is	Decision it informs
Harris, Dallas and Bexar PD appellate division headcounts, appeals assigned per year, reversal rates, and FY2026 budgets	`hcpdo.org`, `budget.harriscountytx.gov`, `dallascounty.org`, `bexar.org` — all blocked	Pilot sizing and the Chambers conversion ask
County transcript rates (Harris, Dallas, Travis, Bexar) and the Tarrant $6.00/page order's text	`topics.txcourts.gov` (the OCA local-rules portal)	Records-concierge cost guidance for 11.07 matters
Fort Bend's appellate dollar schedule; Bexar's capital appeal cap (printed "$1650," likely a typo); Harris's post-2023 schedule status	`fortbendcountytx.gov`; Bexar district courts; Harris indigent-defense coordinator	Which counties are the per-record test beds
Harris County Auditor's FY2023–2025 indigent-defense billing review	`auditor.harriscountytx.gov` (blocked)	Voucher-audit sensitivity; the activity-log export's value
OCFW budget, FTEs, caseload per attorney and attrition; RPDO's total budget (RPDO reported 16 attorney positions with 8 vacant in December 2025) (TIDC GR Committee book)	`ocfw.texas.gov`, `lbb.texas.gov` (blocked)	Confirms, not changes, the capital exclusion
Full text of Ethics Opinions 705, 657, 570, 627 and 646	`legalethicstexas.com`, `law.uh.edu` (blocked); Texas Bar Journal April 2025 p. 310	Whether any consent or disclosure duty exceeds the Bar's summary
TDCJ BP-03.81 and BP-03.91 text, attorney-visit hours and advance notice, 2024–2026 legal-mail handling, and whether ED-03.32 (2009) was superseded	`tdcj.texas.gov` (blocked)	Client-letter design; consumer packet hand-off

Gap	Where the answer is	Decision it informs
Vendor pricing and features for every product in the tools table; whether LawToolBox, CalendarRules, Docket Alarm or Clio carry TRAP/CCA rule sets; Everlaw for Good's eligibility text; Clearbrief, CoCounsel, Lexis Protégé and Vincent verification claims	Vendor hosts (all blocked)	Competitive pricing page; whether the deadline calendar is a differentiator
TBLS's own certification statistics; SBOT section sponsorship prices; TCDLA member-benefit vendor list (login-gated)	`tbls.org` data API; `tex-app.org`; `txbarcjs.org`; TCDLA members' area	Channel budget detail
Private retainer ranges for Texas criminal appeals and PDRs; whether the $15,000–$45,000 writ range holds beyond three firm sites; hours per phase on a felony appeal beyond the Addendum's task buckets; whether digests and cite tables are built, in what tool	Practitioner interviews (two appointed appellate counsel in Dallas/Collin, one PD appellate chief, two writ practitioners, one innocence-organisation screener, one former CCA staff attorney)	The time-saving claim on `/for-counsel`; whether the cite-table export is Phase 1 or 2; whether Persona 1 has a retained segment worth a seat
What a PD appellate division would accept as a pilot outcome metric beyond the Addendum's hours, and its county's budget calendar	Chief defenders in Harris, Dallas, Bexar	Pilot design
TRAIGA (HB 149) enrolled text and its reach to legal-services vendors	`capitol.texas.gov`; `tcss.legis.texas.gov` (Bus. & Com. Code chs. 551–554)	The security packet's TRAIGA statement
TIDC's FY2015 and current statewide attorney-caseload reports (the source of the "55 attorneys with 10+ appeals" figure)	`tidc.tamu.edu/public.net/Reports/AttorneyCaseLoad.aspx` (HTTP 503 this session)	The size of the appointed appellate list to reach individually

Conclusion

Reading the primary documents changes the professional-tier thesis in one direction: it moves the argument from analogy to arithmetic. The earlier edition had to reason from California's fifty pages an hour and Washington's 51-hour weeks; this

one can say that Texas's own indigent-defense commission allots nine to forty hours of record review per appeal depending on length, that the counties pay for it at $100–$155 an hour or inside a $1,800–$7,500 cap, that two of them say in writing that research tooling is overhead, and that the courts' own tables show what the work yields — a 2.6% full-reversal rate on appeal, a 4.4% filed-and-set rate on habeas, and a habeas docket in which restoring a lost appeal or PDR is nearly as common as winning on the merits. Those numbers make the product's value proposition narrower and more defensible at once. For the appointed appellate lawyer in a flat-range county, the product converts hours over the cap into effective rate; for the lawyer in an hourly county and for the public defender office, it converts the same hours into caseload inside TIDC's own ceiling; for the writ lawyer, it converts a $10,000 screening phase into a $199 inventory and a specific affidavit list, and tells the family's lawyer first to check whether the 48.4 letter was ever sent.

What the primary sources could not reach also matters, and the honest statement of it is part of the plan: the statutes, the vendor pages, the federal cases and the county budgets are still behind blocked hosts, and the single rule that would make record-cite verification a signed representation in every Texas appellate filing was proposed in June, expected in October, and unconfirmed in mid-October. The product should be built as though that rule will issue — a verification view, a verification log, excerpts that can be shown on the page — because every other primary document read this pass points the same way: the least AI-adopting segment of the Texas bar says it will use these tools when citation accuracy is solved, and a product that shows its page can say it has solved it for the one kind of citation it makes.